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• *By the Students*

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4TH SEMESTER INDIAN PENAL CODE NOTES

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INDIAN PENAL CODE, 1860

Q. What kind of offences have been excluded from the operation of the Indian Penal Code?

Nothing in IPC shall affect the provisions of any act for punishing mutiny or desertion of officers, soldiers, sailors or airmen in the service of the Government of India of the provision of any special or local law.

This Section excludes the jurisdiction of the Code from dealing with mutiny and desertion of officers, soldiers sailors or airmen in the service of the Government of India, provisions for which is made by special or local law.

Special or local law: Though the provisions of the Penal Code were intended to be of general application, they are not exhaustive and offences defined by special or local law have been excluded from the operation of the code and are made punishable as under those special acts. An act may be punishable both under special or local law and the Penal Code. If special law or local law was intended to be complete in itself, the penal code should have no application but if the intention of the local law or the special law is not to exclude the Penal code, it will apply no person can be punished under both Penal code and the special law for the same offence, and ordinarily a person should be punished under special Act.

The application of the Penal Code is excluded in the following cases:

Martial law: When martial law is in force the municipal law remains suspended and thus the operation of the Penal Code is also suspended. However, prosecution may take place for acts or omission punishable as offences after the Martial law is lifted. Generally, indemnity acts are passed to protect reasons for acts done during the Martial law.

Act of State: Act of State is an act which is injurious to the person or property of some person who is not a subject of India at the time of its commission. The act is done by some representative of the Government of India and it is either previously sanctioned or is subsequently ratified by the Indian National because there can be no act of State between the Government and its subjects. The municipal courts have no jurisdiction to deal with an act of state. Remedy for an act of State may be obtained only through diplomatic channels.

Q. Discuss the provisions under the Indian Penal Code regarding extraterritorial jurisdiction of the Indian Courts.

Sections 3 and 4 deal with the extra-territorial operation of the Indian Penal Code.

Sec. 3. Punishment of offences committed beyond, but which by law may be tried within India: Any person liable, by any Indian law, to be tried for an offence committed beyond India shall be dealt with according to the provisions of this Code for any act committed beyond India in the same manner as if

such act had been committed within India.

Sec. 4. Extension of Code to extra-territorial offences: The provisions of this Code apply also to any offence committed by,

- (1) Any citizen of India in any place without and beyond India;
- (2) Any person on any ship or aircraft registered in India wherever it may be.

Explanation: In this Section the word “offence” includes every act committed outside India which, if committed in India, would be punishable under this Code.

Illustration: A, who is a citizen of India, commits a murder in Uganda. He can be tried and convicted of murder in any place in India in which he may be found.

Sections 3 and 4 give the Indian Courts to inquire into offences, done by the Indians, committed outside India.

If the offences committed on any ship or aircraft registered in India, irrespective of his nationality, he can be inquired by the Indian Courts.

MohdSajeed K. vs. State of Kerala (1995) CrLJ 3313 (Ker.) While disposing this case, the Kerala High Court held that, if an offence was committed outside India by an Indian, can be inquired by the police without seeking previous permission from the Central Government under Sec. 3.

Remia vs. Sub-Inspector of Police, Tanur (1993 CrLJ 1098) An Indian was murdered by another Indian in a foreign country. The local police did not register it. The High Court ordered the police to register F.I.R., and to inquire into the matter under Sec. 3 of the Code.

Dr. Ambati's dowry case: Dr. Ambati's name is well known in entire world. His family settled in America. He is an American citizen. He completed M.B.B.S. at his 18th year, and received award from Guianese Book of the World Records and also from Bill Clinton, the then President of America. With affection on India, he married the Indian (of Karnataka) girl. She could not adjust with them in America.

She returned to her parents' house. She complained to the police in Karnataka that her husband Dr. Ambati demanded dowry, and ill treated her. A case was registered under Sec. 498-A.

Some months after the police registered the case, Dr. Ambati visited India for medical association meeting. At that time, he was arrested by the police, and a criminal case was prosecuted against him.

Extradition: In the Public International Law, “Extradition” means the surrender an accused by one nation to another, for trial and punishment, or convicted of an offence within the jurisdiction of the latter. To effect the Extradition, there must be an extradition agreement between two countries.

There is an extradition agreement between India and Great Britain and with some other countries. There is no such Extradition Agreement between India and Pakistan. Dawood Ibrahim, the accused of Bombay blasting, took shelter in Pakistan. In spite of several requests of the Indian Government, the Pakistan Government has not been extraditing him to India.

Rajan Pillai's Case: Brief Facts: Rajan Pillai, businessman, was involved in a Scam. A non-bailable arrest warrant was issued by the Indian Court. He was not found anywhere in India. Later it came to know that he settled in Singapore.

The Government of India under the Extradition Treaty asked the Government of Singapore to arrest Mr. Pillai and to hand over him to Government of India. Mr. Pillai, was arrested in Singapore and was later handed over to India. Consequently a trial was conducted against him. During his custody in Tihar Jail, he died. His death created a sensation throughout the Country.

The objects of extradition are:

(i) That it is the common interest of mankind that offences against person and property which militate against the general well-being of society, should be repressed by punishment, as the means of deterring others from committing, as well as of deterring the criminal himself from repeating, the offence, as also of disabling the offender, either permanently or temporarily from further crime; and

(ii) that it is to the interest of the State into which territory the criminal has come that he shall not remain at large therein, inasmuch as from his past conduct it may reasonably be anticipated that, if opportunity offers, he will again be guilty of crime. No State can desire that its territory should become a place of refuge for the malefactors of other countries. It is obviously its interest to get rid of them.

These are motives rather for the punishment of offenders than strictly for their extradition. Indian Parliament enacted the Extradition Act, 1962.

Example-1: A, a foreigner, committed an offence in South Africa, and has been staying in India. The Indian Courts have no jurisdiction to try A. He can be entrusted under Extradition Act, 1962 to South Africa on its request. **(Case-Law: Jameson, 1896 2 QB 425)**

Example-2: A, a foreigner, abets a criminal act to be done in India. As the result of abetment of A, that criminal act is committed in India. The Indian Courts have no jurisdiction over A. **(Case-Law: Bahadur (1918) PR No. 23 of 1918).**

Example-3: A, a foreigner, abets a criminal act to be done in India. As the result of abetment of A, that criminal act is completed in India. Later A is found in India. Then the Indian courts have jurisdiction to try A and his accomplice. **(Case-Law: Chhotlai 1912 14 Bom. LR 147)**

Extra-territorial jurisdiction: Sections 3 and 4 confer the Indian criminal courts to have extra-territorial jurisdiction to inquire into any offence defined in this Code offence committed by,

- (a) Any citizen of India in any place without and beyond India;
- (b) Any person on any ship or aircraft registered in India wherever it may be.

The illustration appended to Sec. 4 very clearly enunciates where a citizen of India commits an offence in another country, he can be tried and convicted for the said offence in any place in India in which he may be found.

X, an Indian citizen commits an act in the United States of America which is not an offence according to the U.S. laws but it amounts to an offence under the Indian Penal Code. Shortly after the commission of the act X returns to India. Discuss whether X can be tried for the offence in India. (Sept. 95, o.u.)

Solution: The problem given above is identical with the judgment given in **Sheikh Haidar vs. Syed Issa (1939) Nag 241**. While disposing the case, the Bombay High Court observed that Section 3 postulates the existence of a law that an act constituting an offence in India shall also be an offence when committed in that foreign country, where the offence is said to have been committed. In that case, A, the accused, married a child in a Gulf country.

The child marriages are not prohibited in the Islamic countries. Moreover they are recognised under the Law of Puberty by the Islamic law. A was prosecuted under the Child Marriage Restraint Act in India.

A contended that he could not be prosecuted under the Child Marriage Restraint Act, as the defined offence was not an offence in that Gulf country. The trial Court convicted him.

On appeal, the High Court acquitted the accused opining that the accused could not be held liable, as the act done by him was not an offence in that foreign country, even though it would be an offence in India under the Indian Penal Code.

Admiralty Jurisdiction: Admiralty is that branch or department of law which relates to maritime property, affairs, and transactions, whether civil or criminal.

In a more limited sense, it is the tribunal exercising jurisdiction over maritime causes and administering the maritime law by a procedure peculiar to itself and to some extent, and in respects, distinct from that followed by other Courts.

Under Section 4, its jurisdiction extends over, (a) offences committed on Indian ships on the high seas; (b) offences committed on foreign ships in the Indian territorial waters; and (c) Piracy.

Firstly, the Supreme Court at Calcutta, and later, the High Courts at Bombay, Calcutta and Madras had the admiralty jurisdiction.

Q. Explain the doctrine of 'Actus non facit reum nisi mens sit rea'.

This maxim is important for the determination of criminality of an act or omission. It means that act does not make a man guilty unless his intention is so. The maxim contains a good deal of **truth**, as there could be no crime without the presence of the guilty mind. It has been observed that, "the maxim is bedrock of the English Common Law of crimes and it amounts to no more and no less than that all crime is characterized by and necessarily involves, some form of culpable intentionality".

Or according to Stephen as observed in R. v. Sheppard, it means "no more than that the definition of all or nearly all crimes contains not only an outward and visible element, but a mental element varying

according to the different crimes". It may be said that the two important elements of crime examined from the view point of the offender are—

- (i) Conduct on his part or act or action which constitutes the physical act which is objective; and
- (ii) A guilty state of mind or a mind which is blame-worthy, which is the subjective element usually inferred from either—
 - (a) The facts and circumstances of the case; or
 - (b) On the basis of the proposition that a man intends the natural consequences of his act.

Q. Specify the offences against which the right to private defence can be executed. Indicate the limits within which the right to private defence should be exercised.

It is said that the law of self defence is not written but is born with us. We do not learn it or acquire it somehow but it is in our nature to defend and protect ourselves from any kind of harm. When one is attacked by robbers, one cannot wait for law to protect oneself. Bentham has said that fear of law can never restrain bad men as much as the fear of individual resistance and if you take away this right then you become accomplice of all bad men.

IPC incorporates this principle in **section 96**, which says, Nothing is an offence which is done in the exercise of the right of private defence.

It makes the acts, which are otherwise criminal, justifiable if they are done while exercising the right of private defence. Normally, it is the accused who takes the plea of self defence but the court is also bound take cognizance of the fact that the accused acted in self defence if such evidence exists.

In Section 97 through 106, IPC defines the characteristics and scope of private defence in various situations.

Section 97 - Every person has a right, subject to the restrictions contained in section 99, to defend - first - his own body or body of any other person against any offence affecting the human body. second - the property, whether movable or immovable, of himself or of any other person, against any act which is an offence falling under the definition of theft, robbery, mischief, or criminal trespass, or which is an attempt to commit theft, robbery, mischief or criminal trespass.

This allows a person to defend his or anybody else's body or property from being unlawfully harmed. Under English law, the right to defend the person and property against unlawful aggression was limited to the person himself or kindred relations or to those having community of interest e.g. parent and child, husband and wife, landlord and tenant, etc. However, this section allows this right to defend an unrelated person's body or property as well. Thus, it is apt to call it as right to private defence instead of right to self defence.

It is important to note that the right exists only against an act that is an offence. There is no right to

defend against something that is not an offence. For example, a policeman has the right to handcuff a person on his belief that the person is a thief and so his act of handcuffing is not an offence and thus the person does not have any right under this section.

Similarly, an aggressor does not have this right. An aggressor himself is doing an offence and even if the person being aggressed upon gets the better of the aggressor in the exercise of his right to self defence, the aggressor cannot claim the right of self defence. As held by SC in **Mannu vs State of UP AIR 1979**, when the deceased was waylaid and attacked by the accused with dangerous weapons the question of self defence by the accused did not arise.

The right to private defence of the body exists against any offence towards human body, the right to private defence of the property exists only against an act that is either theft, robbery, mischief, or criminal trespass or is an attempt to do the same.

In **Ram Rattan vs State of UP 1977, SC** observed that a true owner has every right to dispossess or throw out a trespasser while the trespasser is in the act or process of trespassing and has not accomplished his possession, but this right is not available to the true owner if the trespasser has been successful in accomplishing the possession to the knowledge of the true owner. In such circumstances the law requires that the true owner should dispossess the trespasser by taking recourse to the remedies available under the law.

Restrictions on right to private defence : As with any right, the right to private defence is not an absolute right and is neither unlimited. It is limited by the following restrictions imposed by section 99 -

Section 99 - There is no right of private defence against an act which does not reasonably cause the apprehension of death or of grievous hurt, if done, or attempted to be done, by a public servant acting in good faith under colour of his office though that act may not be strictly justifiable by law.

There is no right of private defence against an act which does not reasonably cause the apprehension of death or of grievous hurt, if done, or attempted to be done, by the direction of a public servant acting in good faith under colour of his office though that direction may not be strictly justifiable by law.

There is no right of private defence in cases in which there is time to have recourse to the protection of the public authorities.

Extent to which the right may be exercised - The right of private defence in no case extends to the inflicting of more harm than it is necessary to inflict for the purpose of defence.

Explanation 1 - A person is not deprived of his right of private defence against an act done or attempted to be done by a public servant, as such, unless he knows or has reason to believe that the person doing the act is such public servant.

Explanation 2 - A person is not deprived of his right of private defence against an act done or attempted

to be done by the direction of a public servant, unless he knows or has reason to believe that the person doing the act is acting by such direction, or unless such person states the authority under which he acts or if he has authority in writing, unless he produces such authority if demanded.

Upon carefully examining this section, we can see that the right to private defence is not available in the following conditions -

1. when an act is done by a public servant or upon his direction and the act
 - I. **is done under colour of his office** - an off duty police officer does not have the right to search a house and right to private defence is available against him. A police officer carrying out a search without a written authority, cannot be said to be acting under colour of his office. If the act of a public servant is ultra vires, the right of private defence may be exercised against him.
 - II. **the act does not cause the apprehension of death or grievous hurt** - for example, a police man beating a person senselessly can cause apprehension of grievous hurt and the person has the right of private defence against the policeman.
 - III. **is done under good faith** - there must be a reasonable cause of action on part of the public servant. For example, a policeman cannot just pick anybody randomly and put him in jail as a suspect for a theft. There must be some valid ground upon which he bases his suspicion.
 - IV. **the act is not whollyunjustified** - The section clearly says that the act may not be strictly justified by law, which takes care of the border line cases where it is not easy to determine whether an act is justified by law. It clearly excludes the acts that are completely unjustified. For example, if a policeman is beating a person on the street on mere suspicion of theft, his act is clearly unjustified and the person has the right to defend himself.

However, this right is curtailed only if the person knows or has reasons to believe that the act is being done by a public servant. For example, if A tries to forcibly evict B from an illegally occupied premises, and if B does not know and neither does he have any reason to believe that A is a public servant or that A is acting of the direction of an authorized public servant, B has the right to private defence. In **Kanwar Singh's case 1965**, a team organized by the municipal corporation was trying to round up stray cattle and was attacked by the accused. It was held that the accused had no right of private defence against the team.

2. when the force applied during the defence exceeds what is required to for the purpose of defence. For example, if A throws a small pebble at B, B does not have the right to shoot A. Or if

A, a thief, is running back leaving behind the property that he tried to steal, B does not have the right to shoot A because the threat posed by A has already subsided.

In many situations it is not possible to accurately determine how much force is required to repel an attack and thus it is a question of fact and has to be determined on a case by case basis whether the accused was justified in using the amount of force that he used and whether he exceeded his right to private defence.

In **KurrimBux's case 1865**, a thief was trying to enter a house through a hole in the wall. The accused pinned his head down while half of his body was still outside the house. The thief died due to suffocation. It was held that the use of force by the accused was justified. However, in **Queen vsFukiraChamar**, in a similar situation, a thief was hit on his head by a pole five times because of which he died. It was held that excessive force was used than required.

3. when it is possible to approach proper authorities - No man has the right to take the law into his hands and so when he has the opportunity to call proper authorities, he does not have the right to private defence. It usually happens when there is a definite information about the time and place of danger. But law does not expect that a person must run away to call proper authorities. The question whether a person has enough time depends on the factors such as -
 - I. the antecedent knowledge of the attack.
 - II. how far the information is reliable and precise.
 - III. the opportunity to give the information to the authorities.
 - IV. the proximity of the police station.

In **Ajodha Prasad vs State of UP 1924**, the accused received information that they were going to get attacked by some sections of the village. However, they decided that if they separated to report this to the police they will be in more danger of being pursued and so they waited together. Upon attack, they defended themselves and one of the attackers was killed. It was held that they did not exceed the right of private defence.

Right to private defence of body up to causing death

Section 100 of IPC specifies six situations in which the right of private defence of body extends even to causing death.

Section 100- The right of private defence of the body extends under the restrictions mentioned in section 99, to the voluntary causing of death or of any other harm to the assailant if the offence which occasions the exercise of the right be of any of the descriptions here in after enumerated, namely -

First - such an assault as may reasonably cause the apprehension that death will otherwise be the consequence of such assault.

Second - such an assault as may reasonably cause the apprehension that grievous hurt will otherwise be the consequence of such assault.

Third - An assault with the intention of committing rape.

Fourth - An assault with the intention of gratifying unnatural lust.

Fifth - As assault with the intention of kidnapping or abducting.

Sixth - An assault with the intention of wrongfully confining a person under circumstances which may reasonably cause him to apprehend that he will be unable to have recourse to the public authorities for his release.

Even though this section authorizes a person to cause death of another in certain situation, it is also subject to the same restrictions as given in section 99. Thus, a person cannot apply more force than necessary and must contact the authorities if there is an opportunity.

In **Viswanath vs State of UP AIR 1960**, when the appellant's sister was being abducted from her father's home even though by her husband and there was an assault on her body by the husband, it was held that the appellant had the right of private defence of the body of his sister to the extent of causing death.

To be able to extend this right up to causing death, the apprehension of grievous hurt must be reasonable. In case of **Sheo Persan Singh vs State of UP 1979**, the driver of a truck drove over and killed two persons sleeping on the road in the night. People ahead of the truck stood in the middle of the road to stop the truck, however, he overran them thereby killing some of them. He pleaded right to private defence as he was apprehensive of the grievous hurt being caused by the people trying to stop him. SC held that although in many cases people have dealt with the errant drivers very seriously, but that does not give him the right of private defence to kill multiple people. The people on the road had a right to arrest the driver and the driver had no right of private defence in running away from the scene of accident killing several people.

Yogendra Morarji vs State of Gujarat 1980 is an important case in which SC observed that when life is in peril the accused was not expected to weigh in golden scales what amount of force does he need to use and summarized the law of private defence of body as under -

1. There is no right of private defence against an act which is not in itself an offence under this code.
2. The right commences as soon as and not before a reasonable apprehension of danger to the body arises from an attempt or thread to commit some offence although the offence may not have been committed and it is continuous with the duration of the apprehension.
3. It is a defensive and not a punitive or retributive right. Thus, the right does not extend to the inflicting of more harm than is necessary for defence.

4. The right extends to the killing of the actual or potential assailant when there is a reasonable and imminent apprehension of the atrocious crimes enumerated in the six clauses of section 100.
5. There must be no safe or reasonable mode of escape by retreat for the person confronted with an impending peril to life or of grave bodily harm except by inflicting death on the assailant.
6. The right being in essence a defensive right does not accrue and avail where there is time to have recourse to the protection of public authorities.

Duration of the right of private defence of body: Section 102 specifies the duration of the right of private defence of the body as follows -

Section 102- The right of private defence of the body commences as soon as a reasonable apprehension of danger to the body arises from an attempt or threat to commit the offence, though the offence may not have been committed and it continues as long as such apprehension of danger to the body continues.

The right to defend the body commences as soon as a reasonable apprehension of danger to the body arises and it continues as long as such apprehension of danger to the body continues.

Right to private defence of property up to causing death

Section 103 of IPC specifies four situations in which the right of private defence of property extends even to causing death.

Section 103 - The right of private defence of property extends, under the restriction mentioned in section 99, to the voluntary causing of death or of any other harm to the wrong doer, if the offence, the committing of which, or attempting to commit which, occasions the exercise of the right, be an offence of any of the descriptions hereinafter enumerated, namely -

First - Robbery

Secondly - House breaking by night.

Third - Mischief by fire committed on any building, tent, or vessel, which building tent or vessel is used as a human dwelling or as a place for custody of property.

Fourth - Theft, mischief or house trespass under such circumstances as may reasonably cause apprehension that death or grievous hurt will be the consequence if such right of private defence is not exercised.

A person may cause death in safeguarding his own property or the property of someone else when there is a reason to apprehend that the person whose death has been caused was about to commit one of the offences mentioned in this section or to attempt to commit one of those offences. In case of **State of UP vs Shiv Murat 1982**, it was held that to determine whether the action of the accused was justified or not one has to look in to the bona fides of the accused. In cases where there is

a marginal excess of the exercise of such right it may be possible to say that the means which a threatened person adopts or the force which he uses should not be weighed in golden scales and it would be inappropriate to adopt tests of detached objectivity which would be so natural in a court room.

Duration of the right of private defence of property: Section 105 specifies the duration of the right of private defence of the property as follows -

Section 105- The right of private defence of the property commences as soon as a reasonable apprehension of danger to the property commences. It continues -

In case of theft - till the offender has effected his retreat with the property or either the assistance of the public authorities is obtained or the property has been recovered.

In case of robbery- as long as the offender causes or attempts to cause to any person death or hurt or wrongful restraint or as long as the fear of instant death or of instant hurt or of instant personal restraint continues.

In case of criminal trespass- as long as the offender continues in the commission of criminal trespass or mischief.

In case of house breaking by night- as long as the house, trespass which has been begun by such house breaking, continues.

The case of **Amjad Khan vs State AIR 1952**, is important. In this case, a criminal riot broke out in the city. A crowd of one community surrounded the shop of A, belonging to other community. The crowd started beating the doors of A with lathis. A then fired a shot which killed B, a member of the crowd. Here, SC held that A had the right of private defence which extended to causing of death because the accused had reasonable ground to apprehend that death or grievous hurt would be caused to his family

Q. What are the main ingredients to constitute an offence of Sedition? Analyze the scope and contents of the offences of Sedition and Waging War against the Government of India.

The word "Sedition" does not occur in Section 124-A of the Indian Penal Code or in the Defense of India Rule. It is only found as a marginal note to Section 124-A, and is not an operative part of the section but merely provides the name by which the crime defined in the section will be known.

Section 124A of the Indian Penal Code states, "whoever by words, either spoken or written or by signs, or by visible representation, or otherwise, brings or attempts to bring into hatred or contempt, or excites or attempts to excite disaffection towards, the Government established by law in India, shall be punished with imprisonment for life, to which fine may be added, or with imprisonment which may extend to three years, to which fine may be added, or with fine."

Explanation 1:-The expression "disaffection" includes disloyalty and all feelings of enmity.

Explanation 2:- Comments expressing disapprobation of the measures of the Government with a view to obtain their alteration by lawful means, without exciting or attempting to excite hatred, contempt or disaffection, do not constitute an offence under this Section.

Explanation 3:- Comments expressing disapprobation of the administrative or other action of the Government without exciting or attempting to excite hatred, contempt or disaffection, do not constitute an offence under this Section.

‘Sedition’ means disturbing the tranquility of the State by word, deed or writing and leading ignorant persons to subvert the Government. According to Section 124A, the essential ingredients of sedition are:

- i) Bringing or attempting to bring into hatred or contempt, or exciting or attempting to excite disaffection towards the Government of India.
- ii) Such act or attempt may be done (a) by words, either spoken or written or (b) by signs or (c) by visible representation.

Any act within the meaning of Section 124A which has the effect of subverting the Government by bringing that Government into contempt or hatred or creating disaffection against it would be within the penal statute because the feeling of disloyalty to the Government established by law or enmity to it imports the idea of tendency to public disorder by the use of actual violence or incitement to offence.

In other words, any written or spoken words etc which have implicit in them the idea of subverting Government by violent means which are compendiously included within the term ‘revolution’ have been made penal by Section 124-A of the code.

An offence under Section 124-A is cognizable, but warrant may be issued in the first instance. It is both non-bailable and non-compoundable. It is triable by the Court of Session.

Exciting disaffection: Disaffection means anything which is contrary to affection. It includes disloyalty and all feelings of enmity. It is very much nearer to ‘hatred’ or ‘dislike’. ‘Feeling of enmity’ includes ill-will, hostility to the Government.

The gist of the offence of sedition is incitement to violence; mere abusive words are not enough. The acts or words complained of must incite public disorder or must cause reasonable anticipation or likelihood of public disorder in order to constitute ‘disaffection’.

To constitute an offence under Section 124A, it is not necessary that one should excite or attempt to excite mutiny or rebellion or any kind of actual disturbance, it would be sufficient that one tried to excite feeling of hatred or contempt towards the Government.

A person may be charged not only with exciting but also with attempting to excite and both successful and unsuccessful attempts to excite disaffection were placed on the same footing. So even if a person had only tried to excite the feeling he could be convicted.

The offence under Section 124A does not require an intention to incite violence, of public disorder. The

essence of the offence under this section consists in the intention with which the language is used.

The intention of a speaker, writer or publisher may be inferred from the particular speech, article or letter. The intention is gathered from the article. The requisite intention cannot be attributed to a person if he was not aware of the contents of the seditious publication.

If, on reading the articles or speeches, the reasonable, natural and probable effect of the articles or speeches on the minds of those who read them or to whom they were addressed appears to be that feelings of hatred, contempt or disaffection, would be excited towards the Government, the offence is committed.

Government established by law: Section 17 of the IPC defines Government as denoting 'the Central Government' or 'the State Government of a State'. The term 'Government established by law' has to be understood as being distinct from the Government formed by a particular ruling party or the bureaucracy running the Government.

Criticism of a particular Government or campaigning to bring down a particular Government by a particular ruling party, will not amount to exciting disaffection towards 'the Government established by law.'

In Kedar Nath v. State of Bihar [AIR 1962 SC 955] the Supreme Court held, 'Government established by law' is the visible symbol of the State. The very existence of the State will be in jeopardy if the Government established by law is subverted. Hence, the continued existence of the Government established by law is an essential condition of the stability of the State.

Government does not mean the person or persons in power for the time being. Government means the person or persons collectively, in succession who are authorised to administer Government for the time being.

One particular set of persons may be open to objection, and to assail them and to attack them and excite hatred against them is not necessarily exciting hatred against the Government because they are only individuals and are not representatives of that abstract concept which is Government. To suggest a change in the form of Government cannot be said to be causing disaffection towards the Government established by law or to bring present Government into hatred or concept.

A general criticism of certain officers cannot be deemed to be a criticism of Government established by law in India. Similarly an attempt to remove from power the minister in office in any State or any agitation for the repeal of an Act of Parliament cannot fall under Section 124A of the code if no unlawful means are employed.

Words signs, visible representation or otherwise: As per Section 124A, the manner in which seditious activities can be carried out is by words, either spoken or written, or by signs or by visible representation, or otherwise. The terms 'words', and 'signs' present no difficulty in understanding.

‘Writing’ may be in the form of any kind – poem, drama, story, novel or essay. The next term used is ‘visible representation’.

This term is not defined. It really means any form of communication which is visible to the eye. It includes pictures or dramatic performances in a mime show where no words are spoken. The meaning is conveyed by gestures and motions, and dramatic actions of the performers.

The next words ‘or otherwise’ indicate the universality of the means by which the offence may be committed. Distribution or circulation of seditious material will also constitute an offence.

Defenses: Following are the defences available to a person charged with the offence of sedition to get exemption from the criminal liability:

- 1) That he did not speak or write the words or make the sign or representation, or did not do any other act in question; or
- 2) That he did not thereby bring or attempt to bring into hatred or contempt or excite or attempt to excite disaffection; or
- 3) That such disaffection was not towards the Government of India.

In **Queen Empress v. Bal Gangadhar Tilak**, [ILR 22 Bom 112], a well known Indian leader during freedom struggle was charged for the offence of sedition and was convicted by the Privy Council.

In **Re. Amrita Bazar Patrika Press Ltd.**, [ILR 47 Cal. 1919], the security deposit of appellant press, Amrita Bazar Patrika Press Ltd., was forfeited by the Government of Bengal for publishing two articles ‘To whom does India belong’ and ‘Arrest of Mr. Gandhi – More Outrages’ in its issues dated 10th and 12th April 1919, which excited the disaffection towards the Government under Section 124 A. The application was dismissed.

In **Re. Surendra Narayan Adicharya** [(1911) 39 Cal. 522], it was held that sending through the post a packet containing a copy of a manuscript of a seditious publication with a covering letter requesting the addressee to circulate it to others, when the same was intercepted by another person and never reached the proper address, it constitutes an attempt to commit an offence under Section 124A of the code.

Waging War against the Government of India:

Section 121 of the Indian Penal Code states regarding waging or attempting to wage war or abetting waging of war against the Government of India thus: “whoever wages war against the Government of India, or attempts to wage such war, or abets the waging of such war, shall be punished with death, or imprisonment for life, and shall also be liable to fine.

Illustration: A joins an insurrection against the Government of India. A has committed the offence defined in this Section.

In Section 121 of the code the term 'whoever' applies to Indian citizens as well as foreigners. A citizen owes allegiance by birth or naturalization, and a foreigner by his residence. The State, in accordance with the de jure gentium, admits the right of the foreigners to enter the country only upon the tacit condition that as they rely upon its protection they also subject themselves to its laws.

The expression 'Waging War' means and can only mean, waging war in the manner usual in war. It imports a person arraying himself in defiance of the Government in like manner and by like means as a foreign enemy would do, having gained footing in the realm.

The waging of war is the attempt to accomplish by violence any purpose of a public nature. A deliberate and organised attack upon the Government forces and Government offices amounts to a waging war. There are three stages of waging war against the Government: (i) abetment, (ii) attempt and (iii) the actual war. Section 121 of the code places at par all the three stages of waging war. For all the three types of offences the section imposes the same punishment.

The words 'wages war' naturally import a person arraying himself in defiance of the Government in like manner and by like means as a foreign enemy would do, having gained footing within the realm. There must be an insurrection and there must be force accompanying that insurrection and it must be for an object of a general nature. When a multitude rises and assembles to attain by force and violence any object of a general public nature, it amounts to levying war against the Government.

Every citizen is free to have his own political theory and also to propagate and work for its establishment so long as he does not seek to do so by force or violence.

An offence under Section 121 is cognizable, non-bailable, non-compoundable, and exclusively triable by the Court of Session. It is an offence in which the Judge may issue warrant in the first instance.

In Venu Nair v. Travancore – Cochin State [AIR 1955 Tra-Co 33], it has been held : (i) that it was open to the members of the society to achieve the object of the end of capitalism and private ownership and establishment of a socialist State by all peaceful means, ceaselessly fighting public opinion that might be against them and opposing those who desired the continuance of the existing order of society and the present Government; (ii) that it would also be legitimate to presume that they desired a change in the existing Government so that they could carry out their programme and policy. But from these it did not follow that the society desired to bring about the change by force and violence; (iii) that the mere use of the words 'fight' and 'war' in their pledge, did not necessarily mean that the society planned to achieve its object by force and violence.

In MaganlalRadhaKrishan v. Emperor [AIR 1946 Nag. 126], the following characteristics of the offence of waging war were pointed out:

- i) No specific number of persons is necessary to constitute the offence of waging war;
- ii) The number of persons concerned and the manner in which they are equipped is immaterial;

- iii) The true criterion is 'Quo Animo', did the gathering assemble;
- iv) The object of the gathering must be to attain by force and violence an object of a general public nature there by striking directly against the state authority.
- v) There is no distinction between principal and accessory and everyone who takes part in the unlawful act incurs the same guilt.

In Mir Hasan Khan v. State [AIR 1951 Pat. 50], it was observed that it would not be enough to show that the persons charged have connived to obtain possession of an armory and have when called upon to surrender it used the rifles and ammunition so obtained against the state troops.

It must also be shown that the seizure of the armory was part and parcel of a planned operation and that their intention in resisting the troops of the State was to over helm and defeat the troops and then to go on and crush any further opposition with which they might meet until either the leader of the movement succeed in obtaining possession of the machinery of Government or until those in possession of it yield to the demands of their leaders.

Intention and attempting of waging war: Intention to wage war against the Government is the most essential ingredient under Section 121 of the code. In State **(NCT of Delhi) v. Navjot Sandhu [2005 Cro LJ 3050 (SC)]**, when terrorists entered Parliament House with sophisticated arms and powerful explosives when parliamentary business was being conducted, it was held that the undoubted objective and determination of deceased terrorists was to impinge on sovereign authority of nation and its Government.

It amounts to waging war or attempting to wage war against Government of India. It was also held that to constitute offence of waging war under Section 121 IPC, the intention and purpose of the warlike operations directed against the Government machinery is an important criterion.

The Court further held that the criminal acts done by the deceased terrorists in order to capture the Parliament House amount to waging or attempting to wage war. To constitute offence of waging war, military or other forces need not be the direct target of attack. It was further held that foreign nationals entering Indian Territory with a view to subverting functions of Government and destabilising society can be held guilty of waging war under Section 121 of the IPC.

In Nazir Khan and others v. State of Delhi [AIR 2003 SC 4427] it was observed that a pledge to overthrow capitalism and private ownership and to work for the establishment of a socialist state does not amount to waging war against the State, because every person is entitled to propagate the political faith of his choice.

Q. Nothing is an offence which is done by Person who is bound by law to do it.' Illustrate, with reference to the relevant provisions of the code. "Ignorantia Juris Non Excusat". Analyse the above

maxim.

(Section 77) Act of Judge when acting judicially: The whole section can be divided into following two parts:

- (i) Nothing is an offence which is done by a judge when acting judicially in the exercise of any power which is given to him by law.
- (ii) Nothing is an offence which is done by a judge when acting judicially in the exercise of any power which in good faith he believes to be given to him by law.

Under the first part, a judge does not commit an offence when he does something in his judicial capacity while exercising a power which the law has given to him. Under the second part, it is not an offence for a judge to do something in his judicial capacity while exercising such power which in good faith he believes the law has given to him.

The first part of the section is applicable when a judge acting in his judicial capacity does something while exercising such a power which in fact has been given to him by law. The law empowers him to do something and he does that thing in his judicial capacity. In such circumstances he cannot be held liable for an offence.

There is no question of good faith under this part. On the other hand, under the second part the judge does not exercise a power which has in fact been given to him by law. He does something in his judicial capacity under such powers which he believes in good faith to be given to him by law.

The judge has to prove good faith under this part. It must be proved under this part that even though the judge in fact had no such power under law he in good faith believed that he had such power under which he acted in his judicial capacity. Only then is he protected under this part of the section. The proof of good faith may be a little difficult proposition.

The protection from criminal liability under this section is limited to a Judge only. But there is another Act by the name Judicial Officers' Protection Act, 1850 which gives protection from civil suits to a Judge, Magistrate, Justice of the Peace, Collector or other person acting judicially. Section 1 of this Act states that no Judge, Magistrate, Justice of the Peace, Collector or other person acting judicially shall be liable to be sued in any Civil Court for any act done or ordered to be done by him in the discharge of his judicial duty, whether or not within the limits of his jurisdiction, provided that he at the time, in good faith, believed himself to have jurisdiction to do or order the act complained of. A sitting or former judge is protected from civil and criminal liability under the Judges (Protection) Act, 1985 also.

(Section 78) Act done pursuant to the judgment or order of Court: The section is a natural corollary to section 77 of the Code. It protects those who execute a judgment or order of the Court of Justice. The section says that whilst a judgment or order of a Court of Justice remains in force, anything done in pursuance of the same or warranted by the same is not an offence even if the Court may not have

jurisdiction to pass such judgment or order provided the person who does the act believes in good faith that the Court did have such jurisdiction.

The responsibility to prove good faith is on the accused and 'good faith' has the same meaning as given under section 52 of the Code. While this section gives protection to such person against criminal liability, the Judicial Officers' Protection Act, 1850 affords protection to them against civil liability. Section 1 of this Act states, inter alia, that no officer of any Court or other person, bound to execute the lawful warrants or orders of any such Judge, Magistrate, Justice of the Peace, Collector or other person acting judicially shall be liable to be sued in any Civil Court, for the execution of any warrant or order, which he would be bound to execute, if within the jurisdiction of the person issuing the same.

Section 80 - Nothing is an offence which is done by accident or misfortune, and without any criminal intention or knowledge in doing of a lawful act, in a lawful manner by lawful means with proper care and caution.

Illustration - A works with a hatchet; the head flies off and kills a person standing nearby. Here, if there was no want of proper caution on the part of A, his act is excusable and is not an offence. From section 80, it can be seen that there are four essential conditions when a person can take the defence of an accident -

1. The act is done by accident or misfortune- Stephen in his digest of criminal law explains that an effect is said to be accidental if the act that caused it was not done with an intention to cause it and if the occurrence of this effect due to that act is not so probable that a person of average prudence could take precautions against it. The effect comes as a surprise to the doer of average prudence. Since he does not expect it to happen, he is unable to take any precaution against it.

For example, a firecracker worker working with Gun powder knows that it can cause explosion and must take precaution against it. If it causes an explosion and kills a third person, he cannot claim defence of this section because the outcome was expected even though not intended. However, if a car explodes killing a person, it is an accident because a person on average prudence does not expect a car to explode and so he cannot be expected to take precautions against it.

2. There must not be a criminal intent or knowledge in the doer of the act - To claim defence under this section, the act causing the accident must not be done with a bad intention or bad motive. For example, A prepares a dish for B and puts poison in it so as to kill B. However, C comes and eats the dish and dies. The death of C was indeed an accident because it was not expected by A, but the act that caused the accident was done with a criminal intention.

In **Tunda vs Rex AIR 1950**, two friends, who were fond of wrestling, were wrestling and one got thrown away on a stone and died. This was held to be an accident and since it was not done without any criminal intention, the defendant was acquitted.

3. The act must be lawful, and done in a lawful manner, and by lawful means - An accident that happens while doing an unlawful act is no defence. Not only that, but the act must also be done in a lawful manner and by lawful means. For example, requesting rent payment from a renter is a lawful act but threatening him with a gun to pay rent is not lawful manner and if there is an accident due to the gun and if the renter gets hurt or killed, defence under this section cannot be claimed.

In **Jogeshshwar vs Emperor**, where the accused was fighting with a man and the man's pregnant wife intervened. The accused aimed at the woman but accidentally hit the baby who was killed. He was not allowed protection under this section because he was not doing a lawful act in a lawful manner by lawful means.

4. Proper precautions must be taken while doing the act - The act that causes the harm must have been done with proper care and precautions. An accident caused due to negligence is not excusable. A person must take precautions for any effects that any person with average intelligence would anticipate. For example, a owner of a borewell must fence the hole to prevent children falling into it because any person with average prudence can anticipate that a child could fall into an open borewell.

In **Bhupendra Singh Chudasama vs State of Gujarat 1998**, the appellant, an armed constable of SRPF shot at his immediate supervisor while the latter was inspecting the dam site in dusk hours. The appellant took the plea that it was dark at that time and he saw someone moving near the dam with fire. He thought that there was a miscreant. He shouted to stop the person but upon getting no response he fired the shot. However, it was proven that the shot was fired from a close range and it was held that he did not take enough precaution before firing the shot and was convicted.

Q. Discuss the maxim *Ignorantia juris non excusat*

Ignorantia juris non excusat which is also known as *ignorantia legis neminem excusat* is a legal maxim holding that a person who is unaware of a law may not escape liability for violating that law merely because he or she was unaware of its content.

This principle is generally applicable to criminal cases. The objective of this maxim is that if ignorance is considered an excuse, a person charged with criminal offenses or a subject of a civil lawsuit would merely claim that she/he is unaware of the law in question to avoid liability.

It may be noted that, ignorance of a municipal law is not allowed to excuse anyone who is of the age of discretion from the penalty for the breach of it, for every such person is bound to know the law of the land regulating his conduct, and she/he is presumed so to know (**People v. Klock, 55 Misc. 46 N.Y. County Ct. 1907**).

While considering Mens Rea in Statutory Offences, *at least one thing is crystal clear, namely, that it does not involve proof that the accused knew that he was committing a criminal offence. It has always been*

accepted as an axiomatic principle that ignorance of the law is no excuse. Were the position otherwise it is obvious that the legislature's handiwork could be flouted indiscriminately, an offender taking care to insure that he did not make himself cognizant with the law.

However, the maxim *ignorantiajuris non excusat* has no relevance to the case of a man seeking to recover back money paid by him in misapprehension of his legal rights. Thus, we can say that, said legal maxim is in regard to the public, that ignorance cannot be pleaded in excuse of crimes, but that's not the scenario in civil cases.

Mistake of fact: Sometimes an offence is committed by a person inadvertently. He neither intends to commit an offence nor does he know that his act is criminal. He may be totally ignorant of the existence of relevant facts. The knowledge of relevant facts is what really makes an act evil or good. Thus, if a person is not aware of the facts and acts to the best of his judgment, his act cannot be called evil. Under such circumstances he may take the plea that his acts were done under the misconception of the facts. Such a mistake of fact is acknowledged as a valid defence in section 76 and 79 of IPC.

Section 76 - Act done by a person bound or by mistake of fact believes to be bound by law - Nothing is an offence which is done by a person who is or who by reason of a mistake of fact and not by a reason of a mistake of law, in good faith believes himself to be bound by law to do it.

Illustration - A, a soldier fires on a mob upon orders from his superior, in conformity with the commands of the law. He has committed no offence.

A, an officer of court of justice, upon ordered by that court to arrest Y, after due inquiry, believing Z to be Y, arrests Z. He has committed no offence.

Section 79 - Act done by a person justified or by a mistake of fact believing himself justified by law - Nothing is an offence which is done by the a person who is justified by law , or who by reason of a mistake of fact and not by reason of a mistake of law in good faith believes himself to be justified by law, in doing it.

Illustration - A sees Z doing what appears to be murder. A, in the exercise to the best of his judgment, exerted in good faith of the power which the law gives to all persons of apprehending murderers in the act, seizes Z, in order to bring Z before the proper authorities. A has committed no offence though it may turn out that Z was acting in self defence.

Difference between sec 76 and 79: The only difference between sec 76 and 79 is that in section 76, a person believes that he is bound by to do a certain act while in 79, he believes that he is justified by law to do a certain act. For example, a policeman believing that a person is his senior officer and upon that person's orders fires on a mob. Here, he is bound by law to obey his senior officer's orders. But if the policeman believes that a person is a thief, he is not bound by law to arrest the person, though he is justified by law if he arrests the person.

To be eligible in either of the sections, the following conditions must be satisfied -

1. it is a mistake of fact and not a mistake of law that is excusable.
2. the act must be done in good faith.

Meaning of Mistake - A mistake means a factual error. It could be because of wrong information, i.e. ignorance or wrong conclusion. For example, an ambulance driver taking a very sick patient to a hospital may be driving faster than the speed limit in order to reach the hospital as soon as possible but upon reaching the hospital, it comes to his knowledge that the patient had died long time back and there was no need to drive fast. However, since he was ignorant of the fact, breaking the speed limit is excusable for him. A person sees someone remove a bulb from a public pole. He thinks the person is a thief and catches him and takes him to the police only to learn that the person was replacing the fused bulb. Here, he did the act in good faith but based on wrong conclusion so his act is excusable.

To be excusable, the mistake must be of a fact and not of law. A mistake of fact means an error regarding the material facts of the situation, while a mistake of law means an error in understanding or ignorance of the law. A person who kills someone cannot take the defence of mistake saying he didn't know that killing is a crime because this is a mistake of law and not of fact. But, as in **Waryam Singh vs Emperor AIR 1926**, he can take a defence of mistake saying he believed that the killed person was a ghost because that would be a mistake of a fact.

R vs Prince 1875, is an important case where a person was convicted of abducting a girl under 18 yrs of age. The law made taking a woman under 18 from her guardian without her guardian's permission a crime. In this case, the person had no intention to abduct her. She had gone with the person with consent and the person had no reason to believe that the girl was under 18. Further, the girl looked older than 18. However, it was held that by taking a girl without her guardian's permission, he was taking a risk and should be responsible for it because the law made it a crime even if it was done without mens rea. In this case, five rules were laid down which are guidelines whenever a question of a mistake of fact or mistake of law arises in England and elsewhere -

1. When an act is in itself plainly criminal and is more severely punishable if certain circumstances coexist, ignorance of the existence is no answer to a charge for the aggravated offence.
2. When an act is prima facie innocent and proper unless certain circumstances co-exist, the ignorance of such circumstances is an answer to the charge.
3. The state of the mind of the defendants must amount to absolute ignorance of the existence of the circumstance which alters the character of the act or to a belief in its non-existence.
4. When an act in itself is wrong, and under certain circumstances, criminal, a person who does the wrongful act cannot set up as a defence that he was ignorant of the facts which would turn the wrong into a crime.

5. When a statute makes it penal to do an act under certain circumstances, it is a question upon the wording and object of the statute whether responsibility of ascertaining that the circumstances exist is thrown upon the person who does the act or not. In the former case, his knowledge is immaterial.

The above guidelines were brought in Indian law in the case of **The King vs Tustipada Mandal AIR 1951 by Orissa HC.**

In **R vs Tolson 1889**, a woman's husband was believed to be dead since the ship he was traveling in had sunk. After some years, when the husband did not turn up, she married another person. However, her husband came back and since 7 years had not elapsed since his disappearance, which are required to legally presume a person dead, she was charged with bigamy. It was held that disappearance for 7 yrs is only one way to reach a belief that a person is dead. If the woman, and as the evidence showed, other people in town truly believed that the husband died in a shipwreck, this was a mistake of fact and so she was acquitted.

However, in **R vs White and R vs Stock 1921**, a person was convicted of bigamy. Here, the husband with limited literacy asked his lawyers about his divorce, who replied that they will send the papers in a couple of days. The husband construed as the divorce was done and on that belief he married another woman. It was held that it was a mistake of law.

Q.Explain the doctrine of necessity as a defence as mentioned in the Section 81 of the Indian Penal Code.

When there are two dangers causing two harms in front of a person, under unavoidable circumstances, he is put to face them; he is excused to commit less harm.

In such circumstances, he knows what he is doing. He is compelled to do willful wrong-doing. Law excuses him for such willful wrong-doing. If he does the same thing in the ordinary circumstances, definitely the law punishes him. This is called the Doctrine of Necessity and Compulsion or Jus necessitates.

This is explained in the famous maxim "Necessitas non habet legem". It means: "Necessity knows no laws".

Circumstances/Examples:

(i) Self-preservation: A and B are drowning in the sea clinging to a plank which can support only one. There would be no mercy or love on the opposite person. Each thinks to save his own life. In such circumstances, might is right.

The strongest person throws the weaker person and occupies the plank to save his own life. The person who succeeds to throw another and saves his own life cannot be punished under the penal law.

(ii) In a shipwrecked sailors are driven in the cyclone. 30 Days passed. Due to hungry and thirsty, one or two of them died. The remaining persons kill of the co-sailor and drink the blood and eat the flush to survive them. The law excuses them.

(iii) Fire is spreading. To stop the spreading of fire, if someone pulls down a hut or house, he is excused.

(iv) Right of Private Defence: If A attacks against the person or property of B, or if A attempts to commit rape against C, B can kill A to protect his person and property and also C can kill A to protect her chastity.

Hobbes in his Leviathan writes: "If a man by the terror of present death be compelled to do a fact against the law, he is totally excused; because no law can oblige a man to abandon his own preservation."

Lord Bacon says: "Necessity is of three sorts: necessity of conservation of life; necessity of obedience; and necessity of the act of God or a stranger."

The Law of Jus necessitates (Necessity knows no laws) is defined and explained in Section 81IPC, with one Explanation and two illustrations, which runs:

Sec. 81. Act likely to cause harm, but done without criminal intent, and to prevent other harm:

Nothing is an offence merely by reason of its being done with the knowledge that it is likely to cause harm, if it be done without any criminal intention to cause harm, and in good faith for the purpose of preventing or avoiding other harm to person or property.

Explanation: It is a question of fact in such a case whether the harm to be prevented or avoided was of such a nature and so imminent as to justify or excuse the risk of doing the act with the knowledge that it was likely to cause harm.

Illustrations: (a) A, the captain of a steam vessel, suddenly and without any fault or negligence on his part, finds himself in such a position that before he can stop his vessel, he must inevitably run down a boat B, with twenty or thirty passengers on board, unless he changes the course of his vessel, and that, by changing his course, he must incur risk of running down a boat C with only two passengers on board, which he may possibly clear.

Here, if A alters his course without any intention to run down the boat C and in good faith for the purpose of avoiding the danger to the passengers in the boat B, he is not guilty of an offence, though he may run down the boat C by doing, an act which he knew was likely to cause that effect, if it be found as a matter of fact that the danger which he intended to avoid was such as to excuse him in incurring the risk of running down the boat C.

(b) A, in a great fire, pulls down houses in order to prevent the conflagration from spreading. He does this with the intention in good faith of saving human life or property. Here, if it be found that the harm to be prevented was of such a nature and so imminent as to excuse A's act, A is not guilty of the offence.

Ingredients of Section 81: 1. The circumstances shall compel wrong-doer to do such a criminal act and the wrong-doer shall not have criminal intention.

2. The wrong-doer shall have to do that act with an intention to prevent other harm.

3. The act must be justified under the circumstances. It is a question of fact. Killing a weak beggar, or an old woman, who enter into the house and eats food, is not justifiable under this doctrine.

4. The wrong-doer must act in good faith.

Principle: When, on a sudden and extreme emergency one or the other of two evils is inevitable, it is lawful so to direct events that the smaller only shall occur, appended to Section 81 explain this principle.

In R. vs. Dudley and Stephens (1884) 14 QBD 273), Dudley, Stephens and Brooks all able-bodied English Seamen along with a boy of 18 years of age were compelled to put into a small boat after a shipwreck on the high seas. There was no food or water for seven days. On the 8th day, Dudley and Stephens killed the boy and fed the flesh and blood to survive them.

On 12th day, they were rescued by passing the ship. They were prosecuted for the murder of the boy. The accused pleaded that they acted out of necessity for preservation of their lives.

Judgment: The Privy Council held that the accused were guilty of murder, as there were plenty of chances of getting rescued, and no man would die for starvation for seven days.

In Dhanidaji vs. Emperor (1868) 5 BHC (CrC) 59) The accused was a toddy-tapper. He observed that toddy was being stolen from the trees regularly.

To prevent it, he poisoned toddy in some of the trees. He sold toddy from other trees. However, by mistake, the poisoned toddy was mixed with other toddy, and some of the consumers injured and one of them died. He was prosecuted. He took the plea of Section 81.

Judgment: The Privy Council did not accept his contention of the jus necessitates, as mixing poison was done by the accused intentionally and also with the knowledge that it would cause grave danger to the people. The accused was punished under Section 328 IPC.

In Gopal Naidu vs. State (1922) 46 Mad 605) The accused was a rich person in a village. He drank and created public nuisance and also grave danger to the public. The village Magistrate arrested him. The accused filed a case against the village Magistrate.

Judgment: The Court upheld the act of the village Magistrate as it was necessary to protect the people from the grave danger of the drunken accused and that the village Magistrate acted with lawful authority in good faith under Section 78.

Q. Do you think " Act of child", " insanity", "intoxication" is a good defence? Discuss the relevant Section in detail.

Act of child (Doliincopax)

It is assumed that a child does not have an evil mind and he does not do things with evil intention. He cannot even fully understand the implications of the act that he is doing. Thus, he completely lacks mens rea and should not be punished. IPC contains for following exemptions for a child-

Section 82 - Nothing is an offence which is done by a child under seven years of age.

Section 83 - Nothing is an offence which is done by a child above seven years of age and below twelve years of age who has not attained the sufficient maturity of understanding to judge the nature and consequences of this conduct on that occasion.

Through these sections, IPC acknowledges the fact that children under seven years of age cannot have sufficient maturity to commit a crime and is completely excused. In Indian law, a child below seven years of age is called **DoliIncapax**. In **Queen vs Lakhini Agradanini 1874**, it was held that merely the proof of age of the child would be a conclusive proof of innocence and would ipso facto be an answer to the charge against him.

However, a child above seven but below twelve may or may not have sufficient maturity to commit a crime and whether he is sufficiently mature to understand the nature and consequences of the act needs to be determined from the facts of the case. To claim a defence under section 83, a child must

1. be above seven and below twelve years of age.
2. not have attained sufficient maturity to understand the nature and consequences of his act.
3. be immature at the time of commission of the act.

Section 83 provides qualified immunity because presumes that a child above seven and below twelve has sufficient maturity to commit a crime and the burdon is on the defence to prove that he did not possess sufficient . Thus, in **Hiralal vs State of Bihar 1977**, the boy who participated in a concerted action and used a sharp weapon for a murderous attack, was held guilty in the absence of any evidence leading to boy's feeble understanding of his actions.

In English law, a boy below 14 years is deemed incapable of raping a woman but no such protection is offered in India and in **Emperor vs Paras Ram Dubey**, a boy of 12 years of age was convicted of raping a girl.

Insanity

A person may be rendered incapable of judging an action as right or wrong due to several kinds of deficiency in mental faculty or a disease of mind. Such people are called insane. Their position is same as children below the age of discretion. From time to time several approaches have been adopted to understand insanity and to see whether a person was insane or not at the time of his act.

Wild Beast Test: This test was evolved in **R vs Arnold 1724**. Here, the accused was tried for wounding and attempting to kill Lord Onslow. By evidence, it was clear that the person was mentally deranged. J

Tracy laid the test as follows, "If he was under the visitation of God and could not distinguish between good and evil and did not know what he did, though he committed the greatest offence, yet he could not be guilty of any offence against any law whatsoever."

Insane Delusion Test: This test was evolved in **Hadfield's Case in 1800**, where Hadfield was charged with high treason and attempting the assassination of King George III. He was acquitted on the ground of insane delusion. Here, the counsel pleaded that insanity was to be determined by the fact of fixed insane delusions with which the accused was suffering and which were the direct cause of his crime. He pointed out that there are people who are deprived of their understanding, either permanently or temporarily, and suffer under delusions of alarming description which overpowers the faculties of their victims.

M'Naghten's Rules: In this case, **Daniel M'Naghten** was tried for the murder of a private secretary of the then prime minister of England. He was acquitted on the ground of insanity. This caused a lot of uproar and the case was sent to bench of fifteen judges who were called upon to lay down the law regarding criminal responsibility in case of lunacy. Some questions were posed to the judges which they had to answer. These questions and answers are known as M'Naghten's Rules which form the basis of the modern law on insanity. The following principals were evolved in this case -

1. Regardless of the fact that the accused was under insane delusion, he is punishable according to the nature of the crime if, at the time of the act, he knew that he was acting contrary to law.
2. Every man must be presumed to be sane until contrary is proven. That is, to establish defence on the ground of insanity, it must be clearly proven that the person suffered from a condition due to which he was not able to understand the nature of the act or did not know what he was doing was wrong.
3. If the accused was conscious that the act was one that he ought not to do and if that act was contrary to law, he was punishable.
4. If the accused suffers with partial delusion, he must be considered in the same situation as to the responsibility, as if the facts with respect to which the delusion exists were real. For example, if the accused, under delusion that a person is about to kill him and attacks and kills the person in self defence, he will be exempted from punishment. But if the accused, under delusion that a person has attacked his reputation, and kills the person due to revenge, he will be punishable.
5. A medical witness who has not seen the accused previous to the trial should not be asked his opinion whether on evidence he thinks that the accused was insane.

The Indian Law recognizes the first two principals and incorporates them in section 84.

Section 84 - Nothing is an offence which is done by a person who, at the time of doing it, by the reason

of unsoundness of mind, is incapable of knowing the nature of the act or that he is doing what is either wrong or contrary to law.

Thus, a person claiming immunity under this section must prove the existence of the following conditions -

1. **He was of unsound mind** - Unsound Mind is not defined in IPC. As per Stephen, it is equivalent to insanity, which is a state of mind where the functions of feeling, knowing, emotion, and willing are performed in abnormal manner. The term Unsoundness of mind is quite wide and includes all varieties of want of capacity whether temporary or permanent, or because of illness or birth defect. However, mere unsoundness of mind is not a sufficient ground. It must be accompanied with the rest of the conditions.
2. **Such incapacity must exist at the time of the act** - A person may become temporarily out of mind or insane for example due to a bout of epilepsy or some other disease. However, such condition must exist at the time of the act. In **S K Nair vs State of Punjab 1997**, the accused was charged for murder of one and grievous assault on other two. He pleaded insanity. However, it was held that the words spoken by the accused at the time of the act clearly show that he understood what he was doing and that it was wrong. Thus, he was held guilty.
3. **Due to incapacity, he was incapable of knowing** -
 1. either the nature of the act.
 2. or that the act is wrong.
 3. or that the act is contrary to law.

The accused is not protected if he knows that what he was doing was wrong even if he did not know that what he was doing was contrary to law. In **Chhagan vs State 1976**, it was held that mere queeriness on the part of the accused or the crime does not establish that he was insane. It must be proved that the cognitive faculties of the person are such that he does not know what he has done or what will follow his act

Intoxication

Several times intoxication due to drinking alcohol or taking other substances cause the person to lose the judgment of right or wrong. In early law, however, this was no defence for criminal responsibility. In recent times this has become a valid defence but only if the intoxication was involuntary. Section 85 says thus -

Section 85 - Nothing is an offence which is done by a person who at the time of doing it is by reason of intoxication, incapable of knowing the nature of the act or that he is doing what is either wrong or contrary to law : provided that the thing which intoxicated him was administered to him without his

knowledge or against his will.

This means that to claim immunity under this section, the accused must prove the existence of following conditions -

1. He was intoxicated.
2. Because of intoxication, he was rendered incapable of knowing the nature of the act or that what he was doing was wrong or contrary to law.
3. The thing that intoxicated him was administered to him without his knowledge or against his will.

Director of Public Prosecution vs Beard 1920 was an important case on this point. In this case, a 13 yr old girl was passing by a mill area in the evening. A watchman who was drunk saw her and attempted to rape her. She resisted and so he put a hand on her mouth to prevent her from screaming thereby killing her unintentionally. House of lords convicted him for murder and the following principles were laid down -

1. If the accused was so drunk that he was incapable of forming the intent required he could not be convicted of a crime for which only intent was required to be proved.
2. Insanity whether produced by drunkenness or otherwise is a defence to the crime charged. The difference between being drunk and diseases to which drunkenness leads is another. The former is no excuse but the latter is a valid defence if it causes insanity.
3. The evidence of drunkenness falling short of proving incapacity in the accused to form the intent necessary to commit a crime and merely establishing that his mind was affected by the drink so that he more readily gave way to violent passion does not rebut the presumption that a man intends the natural consequences of the act.

Q. Explain 'Crime' with suitable examples . How many parties of crime are there? What are the different stages of crime ? Discuss in detail.

The concept of crime involves the idea of a public wrong as opposed to a private wrong with the consequent intervention between the criminal and injured party by an agency representing the community as a whole. Crime is thus the intentional commission of an act deemed socially harmful; or dangerous and the reason for making any given act a crime is the public injury that would result from its frequent participation. The society therefore takes steps for its prevention by prescribing specific punishments for each crime.

The legal definition of crime is that it is behaviour or an activity in violation of the legal code. Paul Tappan (1960: 10) has defined crime as "an intentional act or omission in violation of criminal law committed without defence or justification and sanctioned by the state for punishment as a felony or a

misdemeanor". Six elements as under are important in this definition:

1. The act should be actually committed or it should be an omission of a legal duty (as different from moral duty), i.e., a person cannot be punished for his/ her thoughts. In some cases, however, even words may be considered as acts, as in treason or in aiding or abetting another person to commit a crime.

In such cases, it is reasonably argued that some action has taken place. The omission of a legal duty is also a crime. Let us illustrate by taking a couple of examples. Suppose a person has a visitor and this visitor suddenly has a heart attack.

As the host fails to call a doctor, his friend dies. In this situation, the host cannot be convicted for omission of a duty because he was not legally obliged to try to save his visitor's life. Moral duty will not suffice for prosecution. Now, suppose a person is running a creche. A child in the creche gets injured, but, the person fails to call a doctor and the child dies. The owner of the creche can be convicted for omission of his legal duty to save the child's life.

2. The act must be voluntary and committed when the actor has control over his actions. Suppose a person has a dog and he always keeps it chained. A neighbor's child approaches the dog, teases it and throws stones at it.

The dog breaks the chain and bites the child. The dog-owner cannot be prosecuted. The case would be different; however, if the man does not chain his dog, knowing well that it is in the habit of biting people. A visitor, if is bitten by the dog, can file a case against him.

3. The act should be intentional, whether the intent is general or specific. A person may not have specific intent to shoot another person and kill him, but he is expected to know that his action might result in injury or death of others. Thus, if he shoots a person even when having no specific intent to kill him, he commits a crime because he knows well that his action might injure or cause the death of a person.

4. The act should be a violation of a criminal law, as distinct from a non-criminal law or civil and administrative law. This is necessary so that the state can take action against the accused. Non-criminal laws refer to laws which regulate the rights between individuals and organisations; for example, divorce laws, contract laws, laws regulating property rights, etc. We can differentiate between criminal wrongs and non-criminal or civil wrongs.

In a criminal wrong, the state brings an action against the accused wrong-doer, while a non-criminal wrong is a wrong against a particular individual (and not the state) and it is this individual (against whom the wrong is done) who has to take action against the wrong-doer.

Some acts, however, may be both criminal and non-criminal and could invite action on the basis of both criminal and non-criminal laws. For example, a person who assaults another person can be prosecuted

by the state as well as the assaulted person for damages.

5. The act should be committed without defence or justification. Thus, if the act is proved to be in self-defence or to have been committed in insanity, it will not be considered a crime even if it causes harm or injury to others. Ignorance of law is usually no defence.

6. The act should be sanctioned by the state as a felony or a misdemeanor. Persons can be punished only for those acts that may be considered to be socially harmful and for which society has provided punishment. A child of four who has killed his mother cannot be convicted for crime because the state has provided no penalty for a child of this age, even if the act is socially harmful.

Elements of Crime

1. Human Being- The first element requires that the wrongful act must be committed by a human being. In ancient times, when criminal law was largely dominated by the idea of retribution, punishments were inflicted on animals also for the injury caused by them, for example, a pig was burnt in Paris for having devoured a child, a horse was killed for having kicked a man. But now, if an animal causes an injury we hold not the animal liable but its owner liable for such injury.

So the first element of crime is a human being who- must be under the legal obligation to act in a particular manner and should be a fit subject for awarding appropriate punishment.

Section 11 of the Indian Penal Code provides that word 'person' includes a company or association or body of persons whether incorporated or not. The word 'person' includes artificial or juridical persons.

2. Mens Rea- The second important essential element of a crime is mens rea or evil intent or guilty mind. There can be no crime of any nature without mens rea or an evil mind. Every crime requires a mental element and that is considered as the fundamental principle of criminal liability. The basic requirement of the principle mens rea is that the accused must have been aware of those elements in his act which make the crime with which he is charged.

There is a well known maxim in this regard, i.e. "actus non facit reum nisi mens sit rea" which means that, the guilty intention and guilty act together constitute a crime. It comes from the maxim that no person can be punished in a proceeding of criminal nature unless it can be showed that he had a guilty mind.

3. Actus Reus [Guilty Act Or Omission] - The third essential element of a crime is actus reus. In other words, some overt act or illegal omission must take place in pursuance of the guilty intention. Actus reus is the manifestation of mens rea in the external world. Prof. Kenny was the first writer to use the term 'actus reus'. He has defined the term thus- "such result of human conduct as the law seeks to prevent".

4. Injury- The fourth requirement of a crime is injury to another person or to the society at large. The injury should be illegally caused to any person in body, mind, reputation or property as according to Section 44 of IPC, 1860 the injury denotes any harm whatever illegally caused to any person in body,

mind, reputation or property.

Stages Of A Crime If a person commits a crime voluntarily or after preparation the doing of it involves four different stages. In every crime, there is first intention to commit it, secondly, preparation to commit it, thirdly, attempt to commit it and fourthly the accomplishment. The stages can be explained as under-

1. **Intention-** Intention is the first stage in the commission of an offence and known as mental stage. Intention is the direction of conduct towards the object chosen upon considering the motives which suggest the choice. But the law does not take notice of an intention, mere intention to commit an offence not followed by any act, cannot constitute an offence. The obvious reason for not prosecuting the accused at this stage is that it is very difficult for the prosecution to prove the guilty mind of a person.

2. **Preparation-** Preparation is the second stage in the commission of a crime. It means to arrange the necessary measures for the commission of the intended criminal act. Intention alone or the intention followed by a preparation is not enough to constitute the crime. Preparation has not been made punishable because in most of the cases the prosecution has failed to prove that the preparations in the question were made for the commission of the particular crime.

If A purchases a pistol and keeps the same in his pocket duly loaded in order to kill his bitter enemy B, but does nothing more. A has not committed any offence as still he is at the stage of preparation and it will be impossible for the prosecution to prove that A was carrying the loaded pistol only for the purpose of killing B.

Preparation When Punishable- Generally, preparation to commit any offence is not punishable but in some exceptional cases preparation is punishable, following are some examples of such exceptional circumstances-

- Preparation to wage war against the Government - Section 122, IPC 1860;
- Preparation to commit depredation on territories of a power at peace with Government of India- Section 126, IPC 1860;
- Preparation to commit dacoity- Section 399, IPC 1860;
- Preparation for counterfeiting of coins or Government stamps- Sections 233-235, S. 255 and S. 257;
- Possessing counterfeit coins, false weight or measurement and forged documents. Mere possession of these is a crime and no possessor can plead that he is still at the stage of preparation- Sections 242, 243, 259, 266 and 474.

3. **Attempt-** Attempt is the direct movement towards the commission of a crime after the preparation is made. According to English law, a person may be guilty of an attempt to commit an offence if he does an act which is more than merely preparatory to the commission of the offence; and a person will be guilty

of attempting to commit an offence even though the facts are such that the commission of the offence is impossible. There are three essentials of an attempt:-

- Guilty intention to commit an offence;
- Some act done towards the commission of the offence;
- The act must fall short of the completed offence.

Attempt Under The Indian Penal Code, 1860- The Indian Penal Code has dealt with attempt in the following four different ways-

- Completed offences and attempts have been dealt with in the same section and same punishment is prescribed for both. Such provisions are contained in Sections 121, 124, 124-A, 125, 130, 131, 152, 153-A, 161, 162, 163, 165, 196, 198, 200, 213, 240, 241, 251, 385, 387, 389, 391, 394, 395, 397, 459 and 460.
- Secondly, attempts to commit offences and commission of specific offences have been dealt with separately and separate punishments have been provided for attempt to commit such offences from those of the offences committed. Examples are- murder is punished under section 302 and attempt to murder to murder under section 307; culpable homicide is punished under section 304 and attempt to commit culpable homicide under section 308; Robbery is punished under section 392 and attempt to commit robbery under section 393.

Q. Distinguish between Riot and affray; assault and criminal force

No	Riot	Affray
1	Definition: Section 146 of Indian Penal Code defines the offence of rioting and Section 147 prescribes the punishment for rioting. <i>“Whenever force or violence is used by and unlawful assembly, or by any member thereof, in prosecution of the common object of such assembly, every member of such assembly is guilty of the offence or Rioting”</i>	Definition: The definition of affray is given in Section 159 (IPC) – <i>“When two or more person, by fighting in a public place, disturb the public peace, they are said to “commit an affray”.</i>
2	Ingredients – To constitute Rioting under Section 146 the following ingredients must be present – 1). There must an unlawful assembly (Section.141)	Ingredients –To constitute an affray as defined in Section 159 there must be - 1). Fight between two or more person. 2) In a public place, and 3) The fight must disturb the public place.

	2) The accused Must be member of such unlawful assembly (Section 142) 3) Force or violence must be used by the said unlawful assembly or any member thereof.	
3	Riot may be committed in any place public or private.	An affray must be committed in a public place.
4	Riot must be committed by five or more persons. The least number must be five.	An affray can be committed by two or more person the least number must be two.
5	Riot is much serious than affray and is punishable with two years.	An Affray is not so much serious like riot and is punishable with one month or fine up-to rupees hundred
6.	In case of riot every person of the unlawful assembly committing an act is punishable, although some of them may not have personally used force or violence essential for the riot.	In case of affray, only those who are actually engaged are punishable
7.	Punishment -Section 147 prescribes punishment for rioting, Whoever is guilty of rioting, shall be punished with imprisonment of either description for a term which may extend to two years or with fine, or with both.	Punishment -Section 160 of the Indian Penal Code prescribes punishment for affray - Whoever commits an affray, shall be punished with imprisonment of either description for a term which may extend one month, or with fine which may extend to one hundred rupees, or both.

(ii)Difference between assault and criminal force

1. Assault is defined in Sec. 351 I.P.C.

Criminal Force is explained in Sec. 349 and Criminal

2. There is no physical contact in an assault.

Force is explained in Sec. 350 of I.P.C. There is physical contact or fear in the mind of the aggrieved person in the application of force/criminal force is seen.

3. It is an 'attempt' to commit force/criminal force.

In Force/Criminal Force the action of the wrong-doer is completed.

4. Every assault may not include force/criminal force.

But every force/criminal force must always include assault.

5. An assault is an over act indicating an immediate to commit force/criminal force coupled with the capacity of carrying out the intention into effect.

The force/criminal force is something more in it an intentional application of force to the person of another without lawful justification is necessary.

6. In order to constitute an assault it is also necessary that the person so assaulted must, on reasonable grounds, believe that the person assaulting has the ability to apply the force/criminal force so attempted by him,

No such belief is needed in force/criminal force. On the other hand, the application of even the slightest amount of force is actionable. Even a slight touch to person or causing fear is sufficient.

7. Throwing the water upon a person is an assault.

As soon as the water falls on the person, it becomes force.

8. Assault is a lesser form of offence, comparing with force/criminal force.

Q. What are the essential conditions for application of Section 34 (Common Intention) of the Indian Penal Code ?Distinguish between Common Intention and Common Object

COMMON INTENTION: Criminal Intention is the highest form of blameworthiness of mind or *mens rea*. Intention occupies a symbolic place in criminal law. As the highest form of mental element it applies to murder and the gravest form of crimes in criminal justice system. The term 'intention' is not defined in Indian Penal Code but section 34 of IPC deals with common intention. The intention made among several person to do something wrong and act done in that manner in which it was formulated comes under sanction of section 34 of IPC. Section 34 deals with a situation, where an offence requires a particular criminal intention or knowledge and is committed by several persons. Each of them who join the act with such knowledge or intention is liable in the same way as if it were done by him alone with that intention or knowledge. The liability of individuals under this circumstance is called Joint Liability. The principle of Joint Liability defined in section 34 is as follows:

Section 34. Acts done by several persons in furtherance of common intention – When a criminal act is done by several persons in furtherance of common intention of all, each of such persons is liable for that act in the same manner as if it were done by him alone.

Section 33. 'Act', 'Omission'. – the word 'act' denotes as well a series of acts as a single act: the word 'omission' denotes as well a series of omissions as a single omission.

It is clear from s.34 and s.33 that the term criminal act refers to more than a single act and would cover an entire series of acts.

Common intention implies a pre arranged plan and acting in concert pursuant to the plan. Common

intention comes into being prior to the commission of the act, which need not be a long gap. To bring this section into effect a pre-concert is not necessarily be proved, but it may well develop on the spot as between a number of persons and could be inferred from facts and circumstances of each case.

In **Amrik Singh v. State of Punjab, 1972** it has been further held that though common intention may develop in course of the fight but there must be clear and unimpeachable evidence to justify that inference. In the case **Pandurang v. State of Hyderabad, AIR 1954 SC 706**, Supreme court emphasised on this point that prior concert need not be something always very much prior to the incident, but could well be something that may develop on the spot, on the spur of the moment. In this case Ramchander Shelke (deceased) with his wife's sister went to the field. While Ramchander went to river side the five persons including three appellant (Pandurang, Tukia, and Bhilia) attacked on him. According to eyewitnesses, Pandurang, Tukia and Bhilia were holding axes and other two accused Tukaram and Nilia had sticks in their hands. The deceased died on the spot. In this case different eyewitnesses told different story. The trial court convicted each of accused of charge s.302 with s. 34 and sentenced to death. Appeal lied in High court and conviction of Pandurang, Tukia, Bhilia was maintained but other two accused persons sentence was commuted to transportation for life. When the matter came up to Supreme Court, the learned judge said that each are liable for their own act. The Apex Court set aside the death sentence of Pandurang and convicted him instead under s.326, and sentenced for 10 years rigorous imprisonment. The Supreme Court altered the sentence of Tukia and Bhilia to transportation for life. The Supreme Court elaborated in this case that:

"In a case like that, each would be individually liable for whatever injury he caused but none would be vicariously convicted for the acts of any of the others; if the prosecution cannot prove that his separate blow was a fatal one, he cannot be convicted of the murder, however clearly an intention to kill could be proved in this case...."

The essence of liability to be found in existence of common intention is that the criminal act complained against was done by one of the accused persons in furtherance of common intention of all, if this is shown, then the liability for the crime may be imposed on any one of the persons in the same manner as if the act were done by him alone. **Mahboob Shah v. Emperor (1945) 47 Com LR 941**

Inferences: From the various interpretations of Apex Court and guideline given in different cases, some inferences could be drawn to impose Joint Liability under section 34. These are –

1. To establish common intention premeditation of minds is necessary. There should be prior meeting of minds which activated common intention and criminal act should have been done in furtherance of common intention.
2. There may be situation in which premeditation was not present, but intention developed at the spur of the time, but it should must been shared among one another.

3. To prove common intention is a very hard, because it is the mental thinking of the accused at that point of time. So it has to be culled out from the facts and circumstances of each case.
4. There is a difference between common intention and similar intention, and s.34 can be invoked only when the accused shares common intention and not one the similar intention.
5. Unless common intention is proved, individual will be liable for his own act and not otherwise. They will be deal as under s.38 of IPC. And if there is any doubt, the benefit of doubt should be given to the accused.

Difference between Common Intention and Common Object

No	Common Intention	Common Object
1	Meaning Criminal act is done by several persons in furtherance of Common intention	Meaning: Five or more persons commit offence in prosecution of common object.
2	Definition: Section 34 of the Indian Penal Code Defines Common Intention as, "When a criminal act is done by several persons in furtherance of the common intention of all, each of such persons is liable for that act in the same manner as if it were done by him alone.	Definition : According to Section 149 of the Indian Penal Code If an offence is committed by any member of an unlawful assembly in prosecution of the common object of that assembly, or such as the members of that assembly knew to be likely to be committed in prosecution of that object, every person who, at the time of the committing of that offence, is a member of the same assembly, is guilty of that offence.
3	Number of Persons must be more than one.	Minimum numbers of Person must be five to constitute an unlawful assembly.
4	In Common Intention, prior meeting of Mind is essential.	Prior meeting of Mind is not necessary.
5	All persons involved in the Commission of offence shall be equally liable	All persons may or may not be equally liable.

Q. State the five common objects of an unlawful assembly u/s 141 of the IPC.Do you consider that active participation is an essential element in the committing an offence by the members of an unlawful assembly with a common object ?

The offence dealing with Group Liability or Vicarious Liability of members comes under Chapter VIII of the Indian Penal Code. This chapter deals with offences against Public Tranquility from s.141 to s.160. The first section of this chapter s.141 defines Unlawful Assembly, for which there should be five or

more persons and some common objects for which they have made that assembly. The section 141 is:

Section 141. Unlawful assembly —An assembly of five or more persons is designated an “unlawful assembly”, if the common object of the persons composing that assembly is—

(i) Overawe by criminal force: The gist of an offence under clause (1) consists in (i) overawing, (ii) by show of criminal force, (iii) the Government, or (iv) a public servant in the lawful discharge of his public duty. A person is said to overawe another when he restrains him by awe, fear of superior influence.

Overawing merely by superior influence is not criminal, nor is overawing by fear illegal unless it is attended by show of criminal force. Where a person is terrified into doing what he had otherwise no mind to do and refraining from doing what he had otherwise a mind to do, he is said to be overawed and where that fear is brought by show of force, he is said to be overawed by show of criminal force. But to attract the application of this clause it is necessary that the assembly should have had the common object to overawe and it is not enough that the assembly did have the effect of overawing. Thus, where a Sub-Inspector of Police, was thinking of re-arresting a person who had escaped from his custody, a crowd carrying lathis began to assemble and the Sub-Inspector considered their appearance so formidable that he desisted from carrying out his intention from arresting the man. The assembly could not be said to be an unlawful assembly. Overawing by show of criminal force of the Government is by itself illegal but so far as a public servant is concerned the use of criminal force is only illegal if it was used to obstruct such public servant in the exercise of his lawful duties that is if the public servant was not exercising his legal duties this clause will not be attracted.

(ii) Resist legal process: ‘Legal process’ means a measure in accordance with law. Any resistance to the carrying out of the provisions of any law or to the execution of legal process is deemed to be illegal. This clause has not the effect of making an assemblage of persons an unlawful assemblage if the object with which they assembled was perfectly legal one.

Where the warrant was not one which could be lawfully’ executed against the judgment-debtor, resistance to the execution of such warrant did not constitute an offence under Section 141.

(iii) Commit “Mischief” and “Criminal Trespass”: The terms “mischief” and “criminal trespass” are defined by Sections 425 and 441, respectively. “Offence” here means a thing punishable under the Code, or under any special or local law if punishable under such law with imprisonment for a term of six months or upward whether with or without fine (Section 40).

This restriction prescribing minimum punishment applies only to offences under any special or local law. Where five or more persons illegally seize cattle and carry them to the pond they cannot be said to constitute an unlawful assembly as the seizure of cattle even illegally and carrying them to the pond does not fall under the mischief or any of the offence contemplated by the clause.

(iv) Take or obtain possession of any property by criminal force: No person is entitled to vindicate his right to possession of any property by resort to criminal force. The right is subject to the limitations contained in Sections 97 to 106. The right is available only against an offence and not against a lawful act.

Where the right itself is doubtful and it becomes necessary to resort to force in order to defend it the provisions of this clause would be applied and the assembly gathered for that purpose would clearly be an “unlawful assembly”.

Incorporeal rights: The rights of ownership or possession of property are corporeal rights, while rights of using the property are incorporeal rights. In the case of incorporeal rights, such as, a right of way or a right to use water etc., no one is in possession of it except during the actual movement when he is peacefully exercising it.

Any attempt to vindicate such a right by the use of force when the supply of water has been withheld must necessarily be an attempt to enforce a right or supposed right within the meaning of this clause and not an act to maintain an existing right of peaceful possession.

It is perfectly immaterial whether the act which one seeks to prevent by the use of criminal force is legal, or illegal, the test of criminality being the determination to use criminal force and act otherwise than in due course of law so as to threaten public peace.

Enforcement of right or supposed right: The phrase “enforce a right or a supposed right” can only apply when the party claiming the right has no possession over the subject, to the right, and therein lies the distinction between enforcing a right and maintaining a right.

When people go to defend their rights, that cannot be described as “enforcing” any right or “supposed right”. If persons are rightfully in possession of land, and find it necessary to protect themselves from aggression, they are justified in taking precautions by arming themselves and using such force as is necessary to prevent the aggression.

There must be no confusion between the two kinds of right; one the right to defend, other the right to enforce any right or supposed right.

If a person is forced to maintain or defend his right he cannot be said to have committed any illegal act. There is a difference between “forced to maintain or defend” any right and “to enforce” any right or supposed right.

What Section 141 prohibits is enforcing any right or supposed right and not maintaining or defending one’s right. Section 141 must be read with Sections 96 to 106 of the Code dealing with the right of private defence.

Unlawful assembly when right of private defence exceeded: The general exceptions govern the offences defined in the Code. Section 96 lays down that nothing is an offence which is done in exercise

of the right of private defence. The exercise of the right of private defence within the limits prescribed by law will not fall within the expression “to enforce any right or supposed right” as contemplated in Section 141.

The assembly cannot be called an unlawful assembly if its object is to defend property by the use of force within the limits prescribed by law. So long as the force used is “within the limits prescribed by law” no offence is committed, and the provisions of Section 141 and consequently of Section 149 would not apply.

But when the force applied for exercising the right of private defence is in excess of what is prescribed by law, an offence clearly is committed, and in such a case each is liable only for his individual acts done in excess of such right.

Apart from them, their associates in the occurrence also would be constructively guilty of the said offence, if the principles of constructive liability are applicable to them.

(v) Compel any person to do what he is not legally bound to do by means of criminal force:The element of compelling another is important in this clause. This clause is very comprehensive and is applicable to all the rights a man can possess whether they concern the enjoyment or not.

Explanation (i):An assembly which is lawful in its inception may become unlawful subsequently. An assembly which was lawful at its inception became unlawful the moment one of them called on others to assault members of other party and they in response to this incitation started to chase the members of the other party who were running away. Evidence of pre-meditation or preparation is not necessary to impute a common object to the members of an unlawful assembly.

The mob wanted that the deceased should come to the Panchayat where the matter would be settled. At that time it cannot be said that the mob had any intention of assaulting and killing the deceased. But the fact that they had been armed with lathis showed that they were prepared to use force if it was necessary.

One specified member of the mob dealt a lathi blow on the head of the deceased as a result of which he fell on the ground. There was no clear evidence as to what others did in assaulting the deceased but since they knew from the arms carried that force was likely to be used and in fact it was used, they were liable as members of an assembly which clearly became an unlawful assembly with the assault.

In **Moti Das v. Bihar(1954) Cr LJ 1708 (SC)**, Supreme Court held that pre-concert is not necessary. An assembly may be lawful in beginning but may turn into unlawful later.

Being a member of Unlawful assembly is itself a crime and s.143 prescribes the punishment of six months, or fine, or both for being a member of that assembly.

Q. What do you understand by Culpable Homicide? In what circumstances Culpable Homicide does

not amount to Murder? What are those exceptions when Culpable Homicide does not amount to Murder?

The word homicide is derived from two Latin words - homo and cido. Homo means human and cido means killing by a human. Homicide means killing of a human being by another human being. A homicide can be lawful or unlawful. Lawful homicide includes situations where a person who has caused the death of another cannot be blamed for his death. For example, in exercising the right of private defense or in other situations explained in Chapter IV of IPC covering General Exceptions. Unlawful homicide means where the killing of another human is not approved or justified by law. Culpable Homicide is in this category. Culpable means blame worthy. Thus, Culpable Homicide means killing of a human being by another human being in a blameworthy or criminal manner. Section 299 of IPC defines Culpable Homicide as follows -

Section 299 - Who ever causes death by doing an act with the intention of causing death, or with the intention of causing such bodily injury as is likely to cause death, or with the knowledge that he is likely by such act to cause death, commits the offence of Culpable Homicide.

Illustrations -

1. A lays sticks and turf over a pit, with the intention of thereby causing death, or with the knowledge that death is likely to be thereby caused. Z believing the ground to be firm, treads on it, falls in and is killed. A has committed the offence of Culpable Homicide.
2. A knows Z to be behind a bush. B does not know it A, intending to cause, or knowing it to be likely to cause Z's death, induces B fires and kills Z. Here B may be guilty of no offence; but A has committed the offence of Culpable Homicide.
3. A, by shooting at a fowl with intent to kill and steal it, kills B who is behind a bush; A not knowing that he was there. Here, although A was doing an unlawful act, he was not guilty of Culpable Homicide, as he did not intend to kill B, or to cause death by doing an act that he knew was likely to cause death.

Explanation 1 - A person who causes bodily injury to another who is labouring under a disorder, disease or bodily infirmity, and thereby accelerates the death of that other, shall be deemed to have caused his death.

Explanation 2 - Where death is caused by bodily injury, the person who causes such bodily injury shall be deemed to have caused the death, although by resorting to proper remedies and skillful treatment the death might have been prevented.

Explanation 3 - The causing of the death of child in the mother's womb is not homicide. But it may amount to Culpable Homicide to cause the death of a living child, if any part of that child has been brought forth, though the child may not have breathed or been completely born.

Based upon the above definition, the following are the essential elements of Culpable Homicide -

1. **Death of a human being is caused** - It is required that the death of a human being is caused. However, it does not include the death of an unborn child unless any part of that child is brought forth.
2. **By doing an act** - Death may be caused by any act for example, by poisoning or by hurting with a weapon. Here act includes even on omission of an act for which one is obligated by law to do. For example, if a doctor has a required injection in his hand and he still does not give it to the dying patient and if the patient dies, the doctor is responsible.
3. **Intention or Knowledge** - There must be an intention of any of the following -
 1. **Intention of causing death** - The doer of the act must have intended to cause death. As seen in Illustration 1, the doer wanted or expected someone to die. It is important to note that intention of causing death does not necessarily mean intention of causing death of the person who actually died. If a person does an act with an intention of killing B but A is killed instead, he is still considered to have the intention.
 2. **Intention of causing such bodily injury as is likely to cause death** - The intention of the offender may not have been to cause death but only an injury that is likely to cause the death of the injured. For example, A might intended only to hit on the skull of a person so as to make him unconscious, but the person dies. In this case, the intention of the person was only to cause an injury but the injury is such that it is likely to cause death of the person. Thus, he is guilty of Culpable Homicide. However, if A hits B with a broken glass. A did not know that B was haemophilic. B bleeds to death. A is not guilty of Culpable Homicide but only of grievous hurt because he neither had an intention to kill B nor he had any intention to cause any bodily injury as is likely to cause death.

Or the act must have been done with the knowledge that such an act may cause death - When a person does an act which he knows that it has a high probability to cause death, he is responsible for the death which is caused as a result of the act. For example, A knows that loosening the brakes of a vehicle has a high probability of causing death of someone. If B rides such a bike and if he dies, A will be responsible for B's death. In **Jamaluddin's case 1892**, the accused, while exorcising a spirit from the body of a girl beat her so much that she died. They were held guilty of Culpable Homicide. Negligence - Sometimes even negligence is considered as knowledge. In **Kangla 1898**, the accused struck a man whom he believed was not a human being but something supernatural. However, he did not take any steps to satisfy himself that the person was not a human being and was thus grossly negligent and was held guilty of Culpable Homicide.

Murder (When Culpable Homicide amounts to Murder)

Murder is a type of Culpable Homicide where culpability of the accused is quite more than in a mere Culpable Homicide. Section 300, says that Culpable Homicide is Murder if the act by which the death is caused is done

1. with the intention of causing death
2. or with an intention of causing such bodily injury as the offender knows to be likely to cause the death of the person,
3. or with an intention of causing such bodily injury as is sufficient in ordinary course of nature to cause death.
4. It is also Murder if the person committing the act knows that the act is so dangerous that it will cause death or such injury as is likely to cause death in all probability and he has no valid reason for doing that act.

Illustrations

A shoots Z with an intention of killing him. Z dies in consequence. A commits Murder.

A intentionally gives Z a sword cut that sufficient in ordinary course of nature to cause death. Z dies because of the cut. A commits Murder even though he had no intention to kill Z.

A without any excuse fires a loaded canon on a crowd. One person dies because of it. A commits Murder even though he had no intention to kill that person.

Thus, it can be seen that Murder is very similar to Culpable Homicide and many a times it is difficult to differentiate between them. **J Melvill in the case of R vs Govinda 1876 Bom.** analyzed both in the following table -

Culpable Homicide	Murder
A person commits Culpable Homicide if the act by which death is caused is done -	A person commits Murder if the act by which death is caused is done -
1. with the intention of causing death.	1. with the intention of causing death.
2. with an intention to cause such bodily injury as is likely to cause death.	2. with an intention to cause such bodily injury as <u>the offender knows</u> to be likely to cause death of the person <u>to whom the harm is caused</u> .
	3. with an intention of causing bodily injury to any person and the bodily injury intended to be inflicted is <u>sufficient in</u>

	<u>ordinary course of nature to cause death.</u>
3. with the knowledge that such an act <u>is likely</u> to cause death.	4. With the knowledge that the act is so imminently dangerous that it must <u>in all probability</u> cause death.

Based on this table, he pointed out the difference - when death is caused due to bodily injury, it is the probability of death due to that injury that determines whether it is Culpable Homicide or Murder. If death is only likely it is Culpable Homicide, if death is highly probable, it is Murder.

In **Augustine Saldanha vs State of Karnataka LJ 2003**, SC deliberated on the difference of Culpable Homicide and Murder. SC observed that in the scheme of the IPC Culpable Homicide is genus and Murder its specie. All 'Murder' is 'Culpable Homicide' but not vice-versa. Speaking generally, 'Culpable Homicide' sans special characteristics of Murder is Culpable Homicide not amounting to Murder'. For the purpose of fixing punishment, proportionate to the gravity of the generic offence, the IPC practically recognizes three degrees of Culpable Homicide. The first is, what may be called, '**Culpable Homicide of the first degree**'. This is the greatest form of Culpable Homicide, which is defined in **Section 300** as 'Murder'. The second may be termed as '**Culpable Homicide of the second degree**'. This is punishable under the first part of **Section 304**. Then, there is '**Culpable Homicide of the third degree**'. This is the lowest type of Culpable Homicide and the punishment provided for it is also the lowest among the punishments provided for the three grades. Culpable Homicide of this degree is punishable under the second part of **Section 304**.

Thus, it boils down to the knowledge possessed by the offender regarding a particular victim in a particular state being in such condition or state of health that the internal harm caused to him is likely to be fatal, notwithstanding the fact that such harm would not, in the ordinary circumstances, be sufficient to cause death. In such a case, intention to cause death is not an essential requirement. Only the intention of causing such injury coupled with the knowledge of the offender that such injury is likely to cause death, is enough to term it as Murder.

Situations where Culpable Homicide does not amount to Murder: Section 300 also specifies certain situations when the Murder is considered as Culpable Homicide not amounting to Murder. These are -

1. If the offender does an act that causes death because of grave and sudden provocation by the other. **(Exception I)** - Culpable Homicide is not Murder if the offender, whilst deprived of the power of self-control by grave and sudden provocation, causes the death of the person who gave the provocation or causes the death of any other person by mistake or accident. The above exception is subject to the following provisos -

1. That the provocation is not sought or voluntarily provoked by the offender as an excuse for

killing or doing harm to any person.

2. That the provocation is not given by anything done in obedience to the law, or by a public servant in the lawful exercise of the powers of such public servant.
3. That the provocations not given by anything done in the lawful exercise of the right of private defence.

Explanation-Whether the provocation was grave and sudden enough to prevent the offence from amounting to Murder is a question of fact.

Illustrations

1. A, under the influence of passion excited by a provocation given by Z, intentionally kills, Y, Z's child. This is Murder, in as much as the provocation was not given by the child, and the death of the child was not caused by accident or misfortune in doing an act caused by the provocation.
2. Y gives grave and sudden provocation to A. A, on this provocation, fires a pistol at Y, neither intending nor knowing himself to be likely to kill Z, who is near him, but out of sight. A kills Z. Here A has not committed Murder, but merely Culpable Homicide.
3. A is lawfully arrested by Z, a bailiff. A is excited to sudden and violent passion by the arrest, and kills Z. This Murder, in as much as the provocation was given by a thing done by a public servant in the exercise of his powers.
4. A appears as a witness before Z, a Magistrate, Z says that he does not believe a word of A's deposition, and that A has perjured himself. A is moved to sudden passion by these words, and kills Z. This is Murder.
5. A attempts to pull Z's nose, Z, in the exercise of the right of private defence, lays hold of a to prevent him from doing so. A is moved to sudden and violent passion in consequence, and kills Z. This is Murder, in as much as the provocation was given by a thing done in the exercise of the right of private defence.
6. Z strikes B. B is by this provocation excited to violent rage. A, a bystander, intending to take advantage of B's rage, and to cause him to kill Z, puts a knife into B's hand for that purpose. B kills Z with the knife. Here B may have committed only Culpable Homicide, but A is guilty of Murder.

2. If the offender causes death while exceeding the right to private defense in good faith. **(Exception 2)** - Culpable Homicide is not Murder if the offender, in the exercise in good faith of the right of private defence of person or property, exceeds the power given to him by law and causes the death of the person against whom he is exercising such right of defence without premeditation, and without any intention of doing more harm than is necessary for the purpose of such defence.

Illustration - Z attempts to horsewhip A, not in such a manner as to cause grievous hurt to A. draws out a pistol. Z persists in the assault. A believing in good faith that he can by no other means prevent himself from being horsewhipped, shoots Z dead. A has not committed Murder, but only Culpable Homicide.

3. If the offender is a public servant and does an act that he, in good faith, believes to be lawful. **(Exception 3)**- Culpable Homicide is not Murder if the offender, being a public servant or aiding a public servant acting or the advancement of public justice, exceeds the powers given to him by law, and causes death by doing an act which he, in good faith, believes to be lawful and necessary for the due discharge of his duty as such public servant and without ill-will towards the person whose death is caused.

4. If the act happens in a sudden fight in the heat of passion. **(Exception 4)** - Culpable Homicide is not Murder if it is committed without premeditation in a sudden fight in the heat of passion upon a sudden quarrel and without the offenders having taken undue advantage or acted in a cruel or unusual manner.

Explanation-It is immaterial in such cases which party offers the provocation or commits the first assault.

In a very recent case of **Byvarapu Raju vs State of AP 2007**, SC held that in a Murder case, there cannot be any general rule to specify whether the quarrel between the accused and the deceased was due to a sudden provocation or was premeditated. "It is a question of fact and whether a quarrel is sudden or not, must necessarily depend upon the proved facts of each case," a bench of judges ArijitPasayat and D K Jain observed while reducing to 10 years the life imprisonment of a man accused of killing his father. The bench passed the ruling while upholding an appeal filed by one Byvarapu Raju who challenged the life sentence imposed on him by a session's court and later affirmed by the Andhra Pradesh High Court for killing his 'drunkard' father.

5. If the deceased is above 18 and the death is caused by his own consent. **(Exception 5)**- Culpable Homicide is not Murder when the person whose death is caused, being above the age of eighteen years, suffers death or takes the risk of death with his own consent.

Illustration - A, by instigation, voluntarily causes, Z, a person under eighteen years of age to commit suicide. Here, on account of Z's youth, he was incapable of giving consent to his own death; A has therefore abetted Murder.

Q. What are the main ingredients of the offence of Grievous hurt? Distinguish between Hurt and Grievous Hurt.

Hurt generally means injury on the body of a person. It is such an injury which causes bodily pain or disease or infirmity or fracture or disfigurement of face etc.

There are two kinds of Hurt:-

1. Simple Hurt :- simple hurt is defined under section 319 of IPC whereas the grievous hurt has been defined under section 320. Simple hurt causes simple injury with simple bodily pain, while grievous hurt causes serious injury and serious pain in the body too.

DEFINITION OF SIMPLE HURT: Section 319 says that, "whoever causes bodily injury or pain or disease or infirmity by an act to any other person, such act is called simple hurt.

Section 319 contains the following ingredients:-

- a) Bodily Pain:-** The words show that there must be some pain in the body of a person. It means mental pain does not come under bodily pain. Any such injury which causes pain on any external part of body comes under simple hurt.
- b) Disease :** Disease means any illness. By such act which creates weakness and if a man comes into contact of any disease then it will come under simple hurt.
- c) Infirmity:-** Infirmity means by illness. By such act which creates weakness in the body, comes under simple hurt.
- d) To any other Person :** The hurt must be caused to any other person not to himself. In this way, in a simple hurt there is no need of physical contact. A hurt may be caused by any mean or method. Such hurt must cause bodily pain or disease or infirmity. Such hurt must be caused to another person and not to himself.
- e) Section 319 does not show that there must be direct physical contact with another person for committing simple hurt.**

Grievous Hurt : There are various kinds of grievous hurt which have been defined in **section 320** in IPC. Thus a hurt is more than a slightly causing harm as defined in section 95 of IPC and less the culpable homicide. If the hurt results into death and fulfils the conditions of section 299 then it becomes culpable homicide, otherwise it grievous hurt.

The grievous hurt can be classified/designated as under :-

- a. Emasculation :** The destruction of private organ of a human being is known as emasculation. Any injury which makes a person incapable for functioning of the private organ, person comes under grievous hurt.
- b. Permanent privation of the sight of either eye:** if there is privation or separation or destruction

either eye of a person, is grievous hurt.

c. Permanent privation of the hearing of either ear: Similarly the destruction or separation of either ear is grievous hurt. Here the power of hearing must be affected. The eye and ears are the main functional organs of a human being. They have is an important role in the life.

d. Privation of any member or joint: Privation of any member or joint also comes under grievous hurt.

e. Destruction or permanent loss of the power of any member or joint:- If there is destruction of any member of joint of the body then it is also a grievous hurt or if any member or joint fails to work properly then also it will comes under grievous hurt.

f. Permanent disfiguration of the head or face :- Permanent disfiguration of the head or face means to cause such an injury on the head or face that they look bad or head becomes crucial.

g. Fracture or dislocation of Bone or tooth:- When any bone or tooth is dislocated it means they loss their original place. Fracture of any bones comes under grievous hurt.

h. When there is an such hurt which endangers to life or which causes paid continuously for a period of 20 days. Endanger to life mean there must be death from such hurt. If the death is caused by grievous then it will not be culpable homicide or murder because there is no intention to cause death. So any hurt to create danger to life is also called grievous hurt.

In the case of **PalaniGoudon v/s Emperor Madras**. It was held by a full bench of the Madras High Court that the accused was guilty of either murder or culpable homicide not amounting to murder. However Their Lordship held that on the facts found the accused could not be convicted either of murder or culpable homicide, he could of course be punished both of his original assault on his wife and for his attempt to create false evidence by hanging her. He was convicted under section 326 Of IPC.

PUNISHMENT FOR SIMPLE & GRIEVOUS HURT:

Section 323 : Punishment for voluntarily causing hurt is one year or fine or with both.

Section 325: For voluntarily causing grievous hurt, the punishment is 7 years with fine.

Section 326: Whoever except the case provided for by sec.335 voluntarily causes grievous hurt by means or any instrument for shooting or cut or any instrument which is used as a weapon of offence is likely to cause death or by means of fire. Punishment imprisonment of life, it is ten years with fine.

Difference between hurt and Grievous Hurt

1. Section 319 defines Hurt.

Section 320 explains the eight categories of grievous hurt.

2. Simple hurt does not endanger to life. It is not serious.

Grievous Hurt may cause endanger to life.

3. Simple hurt includes bodily pain, disease and infirmity. It may also include mental shock.

Grievous hurt is serious in its nature.

4. Hurt is punishable, when it is accompanied with other offences, such as voluntarily causing hurt, etc.

Grievous hurt itself is punishable offence. Punishment increases depending upon the nature of the Grievous Hurt.

5. Injuries caused with burning fire wood do not endanger life, and therefore, do not fall within the injuries specified in Sec. 320.

Emasculation, permanent privation of sight of either eye, or hearing of either ear, etc. are Grievous hurts.

6. Where the knife injury though was on the vital part of the body, but the depth of the injury was not given. X-ray reports also did not show any bone cut. The injury was held simple. The Court convicted the accused u/s. 324.

The accused fired on the neck of the victim. It resulted in bleeding for three hours. It is a Grievous hurt. The accused is punishable u/s 326.

7. An injury, which cannot be endangering to life, is not a grievous hurt, but is a simple hurt.

An injury, if it endangers life, is a Grievous hurt.

8. The accused stabbed with a sharp-edged weapon on abdomen of victim. The doctor said that the injury touched interior surface of the stomach, but did not touch any important organ or structure. He also stated that it could not endanger life. The injury was treated as a simple hurt.

The accused thrust a lathi into anus of the victim. The Court treated it as a Grievous hurt.

Q. What is meant by kidnapping from India, kidnapping from guardianship, and abduction? Differentiate between Kidnapping and Abduction.

Kidnapping and abduction are particular types of offences under the law of crime. Under these offences, a person is taken away secretly or forcible without his consent or without the consent of authorised guardian. Under kidnapping a person is kidnapped from lawful custody. Under section 359 of IPC, there are two types of kidnapping :-

1. Kidnapping from India.
2. Kidnapping from lawful guardianship.

Kidnapping from India - Kidnapping from India means taking anybody, without his consent, out of the borders of India. Section 360 defines it as follows -

Section 360 - Whoever conveys any person beyond the limits of India without the consent of that

person or of some person legally authorized to consent on behalf of that person, is said to kidnap that person from India.

For example, if A takes B without his consent or without B's lawful guardians consent to Pakistan, A would be committing this offence. The essential ingredient of Kidnapping are -

1. The person should be conveyed out of the borders of India.
2. The person should be conveyed without his consent or without the consent of the person who is legally authorized to consent on his behalf.

Thus, if a person is not capable of giving valid consent as in the case of a minor or a person with unsound mind, the consent of his lawful guardian is required to take him outside India.

Kidnapping from Lawful guardianship - Kidnapping from lawful guardianship means taking a child away from his lawful guardian without the guardian's consent. Section 361 defines it as follows -

Section 361 - Whoever takes or entices any minor under 16 yrs of age if male or 18 yrs of age if female, or any person of unsound mind, out of the keeping of the lawful guardian of such minor or person of unsound mind, without the consent of such guardian, is said to kidnap such minor or person from lawful guardianship.

Explanation - The words lawful guardian in this section include any person lawfully entrusted with the care or custody of such minor or other person.

Exception - This section does not extend to the act of any person who in good faith believes himself to be the father of an illegitimate child or who in good faith believes himself to be entitled to the lawful custody of such child, unless such act is committed for an immoral or unlawful purpose.

Based on this section the essential ingredients are -

1. **The person should either be a minor or a person of unsound mind** - This implies that the person is not capable of giving consent. In case of male child the age is 16 yrs while in case of a female child the age is 18 yrs. For a person on unsound mind, age is immaterial.
2. **Such person be taken or enticed away** - This means that either force is used or any enticement that causes the person to leave domain of the lawful guardian is used. For example, if A shows toffee to a child C thereby causing the child to come out of the house and follow A, it fall under this category.
3. **Such person must be taken or enticed away from the lawful guardian**- Only when the child is under the lawful guardian, can he be kidnapped. This means that the child should be under the domain of the lawful guardian. For example, an orphan wandering on the streets cannot be kidnapped because he doesn't have a lawful guardian. However, this does not mean that a child must be with the lawful guardian. For example, a child sitting in a school is also under the dominion of his father and if A takes such a child away, it would be kidnapping. Further, a lawful

guardianship does not necessarily mean a legal guardian. A legal guardian may entrust the custody of his child to someone else. Taking a child away from such custody will also fall under this section. For example, A entrusts his child to B, his servant, to take the child to school. If, C takes the child away from the servant, this would be kidnapping because the servant has the lawful guardianship of the child.

Distinction between taken away and allowing a child to follow - In **Vardrajan vs State of Madras AIR 1965, SC** observed that there is a difference between taking away a minor and allowing the minor to follow. If a person knowingly does an act which he has reason to believe will cause the child to leave the guardian, then it would amount to taking away the child, however, if child follows a person even when a person does not do any act meant to entice a child to leave his guardian, he cannot be held responsible. For example, if a child follows an icecream vendor, without any enticement from the vendor, while the guardian fails to keep the watch, the vendor cannot be held guilty under this section.

In **Chajju Ram vs State of Punjab AIR 1968**, a minor girl was taken away out of the house for only about 20 - 30 yards. it was held that it was kidnapping because distance is immaterial.

Kidnapping is complete as soon as the minor or the person with unsound mind leaves the custody of the guardian. It is not a continuing offence. Thus, when a child is kidnapped from place P1 and taken to place P2 and then from P2 to P3, kidnapping was done only once.

Abduction: Section 362 of IPC defines Abduction as follows -

Section 362 - Whoever by force compels, or by any deceitful means induces, any person to go from any place is said to abduct that person.

It means compelling a person, or to induce him to go from where he is to another place. The essential ingredients are -

A person goes from one place to another - A person cannot be abducted at the same place where he is. For abduction to take place, the person should physically move from one place to another.

Either by forcible compulsion or by inducement - The movement of the person must be because of some compulsion or because of some inducement. For example, A threatens B on gun point to go from his house to another city. Here, A has compelled B to go from his house and is thus guilty under this section.

Here, the age of the abducted person is immaterial. Thus, even a major can be abducted if he is forced to go from one location. But if a minor is abducted, it may amount to Kidnapping as well. Further, it is a continuing offence. As long as a person is forced to go from place to place, abduction continues.

Distinction / Difference between Kidnapping and Abduction

No.	Kidnapping	Abduction
1	Section 359, I.P.C. : <u>Kidnapping is of two kinds:</u> 1) kidnapping from India, and 2) kidnapping from lawful guardianship.	Section 362 of Indian Penal Code defines, Abduction: "Whoever by force compels, or by any deceitful means induces any person to go from any place, is said to abduct that person.
2	There are two types of kidnapping 1) kidnapping from India 2) kidnapping from lawful guardianship	It is only of one kind
3	It is committed against minor (below 16 years of age if male and below 18 years of age if female) and person of unsound mind of any age.	Anybody can be abducted
4	Intention of the accused is immaterial	Intention of accused is very important
5	In kidnapping consent of the person is immaterial	In case of abduction, consent of person abducted is very much materialistic and is good evidence.
6	Kidnapping is not continuing offence. The offence is complete when the person is removed from lawful guardianship	Abduction is a continuing process in which a person kidnapped moves from place to place.
7	Whoever kidnaps any person from India or from lawful guardianship shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.	Abduction itself is not punishable, but it is made criminal offence only when it is committed with one or other intents specified in Sections 363A, 364, 364A to 369 of the Indian Penal Code

Q. Define and explain Theft, Extortion, robbery and dacoity. Differentiate between Theft and Extortion; Robbery and Dacoity.

Theft

In general, theft is committed when a person's property is taken without his consent by someone. For example, A enters the house of B and takes B's watch without B seeing and puts it in his pocket with an intention to take it for himself. A commits theft. However, besides the ordinary meaning conveyed by the word theft, the scope of theft is quite wide. **Section 378** of IPC defines theft as follows -

Section 378 - Whoever, intending to take dishonestly any movable property out of the possession of any person without that person's consent, moves that property in order to such taking, is said to commit theft.

Based on this definition, the following are the essential constituents of Theft -

1. **Dishonest intention to take property** - There must be dishonest intention on the part of the offender. As defined in **Section 24** of IPC, dishonestly means that there must be a wrongful loss to one or wrongful gain to another. For example, A quietly takes money from B's purse for his spending. Here, A causes wrongful loss to B and is thus guilty of theft. However, if the intention of the offender is not to cause a wrongful loss or wrongful gain, he does not commit theft even if he takes the property without consent. For example, A gives his watch to B for repairing. B takes the watch to his shop. A, who does not owe any debt to B for which B has the right to retain the watch, follows B and forcibly takes back the watch. Here, A does not commit theft because he has no dishonest intention. Similarly, when A, believing, in good faith, a property in possession of B, to be his, takes it from B, it is not theft.

In **K. N. Mehra v. State of Rajasthan AIR 1957 S. C. 369**, SC held that proof of intention to cause permanent deprivation of property to the owner, or to obtain a personal gain is not necessary for the purpose of establishing dishonest intention. Thus, In **Pyarelal Bhargava vs State AIR 1963**, a govt. employee took a file from the govt. office, presented it to B, and brought it back to the office after two days. It was held that permanent taking of the property is not required, even a temporary movement of the property with dishonest intention is enough and thus this was theft.

2. **Property must be movable** - An immovable property cannot be stolen or moved from the possession so a theft cannot happen in respect of an immovable property. However, as per **Explanation 1** of section 378, as long as a thing is attached to earth, not being movable, is not subject of theft. However, as soon as it is severed from the earth, it is capable of being the subject of theft. Further, **Explanation 2** says that a moving affected by the same act that causes severance, may be theft.

For example, a tree on A's land is not capable of being the subject of theft. However, if B, with an intention to take the tree, cuts the tree, he commits theft as soon as the tree is severed from the earth.

In **White's case, 1853**, a person introduced another pipe in a gas pipeline and consumed the gas bypassing the meter. Gas was held to be a movable property and he was held guilty of theft.

3. **Property must be taken out of possession of another** - The property must be in possession of someone. A property that is not in possession of anybody cannot be a subject of theft. For

example, wild dogs cannot be a subject of theft and so if someone takes a wild dog, it will not be theft. It is not important whether the person who possess the thing is the rightful owner of that thing or not. If the thing is moved out of mere possession of someone, it will be theft. For example, A, a coin collector, steals some coins from B, a fellow coin collector. A finds out that they were his coins that were stolen earlier. Here, even though B was not the rightful owner of the coins, he was still in possession of them and so A is guilty of theft.

In **HJ Ransom vs TrilokiNath 1942**, A had taken a bus on hire purchase from B under the agreement that in case of default B has the right to take back the possession of the bus. A defaulted, and thereupon, B forcibly took the bus from C, who was the driver of the bus. It was held that the C was the employee of A and thus, the bus was in possession of A. Therefore, taking the bus out of his possession was theft.

4. **Property must be taken without consent** - In order to constitute theft, property must be taken without the consent of person possessing it. As per **Explanation 5**, consent can be express or implied. For example, A, a good friend of B, goes to B's library and takes a book without express consent of B, with the intention of reading it and returning it. Here, A might have conceived that he had B's implied consent to take the book and so he is not guilty of theft. Similarly, when A asks for charity from B's wife, and when she gives A some clothes belonging to B, A may conceive that she has the authority to give B's clothes and so A is not guilty of theft. In **Chandler's case, 1913**, A and B were both servants of C. A suggested B to rob C's store. B agreed to this and procured keys to the store and gave them to A, who then made duplicate copies. At the time of the robbery, they were caught because B had already informed C and to catch A red handed, C had allowed B to accompany A on the theft. Here, B had the consent of C to move C's things but A did not and so A was held guilty of theft.
5. **Physical movement of the property is must** - The property must be physically moved. It is not necessary that it must be moved directly. As per **Explanation 3**, moving the support or obstacle that keeps the property from moving is also theft. For example, removing the pegs to which bullocks are tied, is theft. Further, as per **Explanation 4**, causing an animal to move, is also considered as moving the things that move in consequence. For example, A moves the bullock cart carrying a box of treasure. Here, A is guilty of moving the box of treasure. In **Bishaki's case 1917**, the accused cut the string that tied the necklace in the neck of a woman, because of which the necklace fell. It was held that he caused sufficient movement of the property as needed for theft.

Theft of one's own property: As per the definition of theft given in section 378, it is not the ownership but the possession of the property that is important. A person may be a legal owner of a property but if

that property is in possession, legally valid or invalid, of another, it is possible for the owner to commit theft of his own property. This is explained in **illustration j** of section 378 - A gives his watch to B for repairs. B repairs the watch but A does not pay the repairing charges, because of which B does not return the watch as a security. A forcibly takes his watch from B. Here, A is guilty of theft of his own watch.

Further, in **illustration k**, A pawns his watch to B. He takes it out of B's possession, having not paid to B what he borrowed by pawning it, without B's consent. Thus, he commits theft of his own property in as much as he takes it dishonestly.

In **Rama's Case 1956**, a person's cattle was attached by the court and entrusted with another. He took the cattle out of the trustee's possession without recourse of the court. He was held guilty of theft.

Extortion

In Extortion, a person takes the property of another by threat without any legal justification. Section 383 defines extortion as follows -

Section 383 - Whoever intentionally puts any person in fear of any injury to that person, or to any other, and thereby dishonestly induces the person so put in fear to deliver to any person any property or valuable security or anything signed or sealed, which may be converted into a valuable security, commits extortion.

For example, A threatens to publish a defamatory libel about B unless B gives him money. A has committed extortion. A threatens B that he will keep B's child in wrongful confinement, unless B will sign and deliver to A a promissory note binding B to pay certain moneys to A. B signs and delivers such note. A has committed extortion.

The following are the constituents of extortion -

1. Intentionally puts any person in fear of injury - To be an offence under this section, putting a person in fear of injury intentionally is a must. The fear of injury must be such that is capable of unsettling the mind of the person threatened and cause him to part with his property. Thus, it should take away the element of freeness and voluntariness from his consent. The truth of the threat under this section is immaterial. For example, A's child is missing and B, who does not have A's child, threatens A that he will kill A's child unless A pay's him 1 lac Rs, will amount to extortion. Similarly, guilt or innocence of the party threatened is also immaterial. In **Walton's case 1863**, the accused threatened to expose a clergyman, who had criminal intercourse with a woman of ill repute, unless the clergyman paid certain amount to him. He was held guilty of extortion.

However, in **Nizamuddin's case 1923**, a refusal by A to perform marriage and to enter it in the register unless he is paid Rs 5, was not held to be extortion.

2. Dishonestly induces a person so put in fear to deliver to any person any property - The second critical element of extortion is that the person who has been put to fear, must deliver his property to any person. Dishonest inducement means that the person would not have otherwise agreed to part with his property and such parting causes him a wrongful loss. Further, the property must be delivered by the person who is threatened. Though, it is not necessary to deliver the property to the person threatening. For example, if A threatens B to deliver property to C, which B does, A will be guilty of extortion.

The delivery of the property by the person threatened is necessary. The offence of extortion is not complete until delivery of the property by the person put in fear is done. Thus, **Duleelooddeen Sheikh's case 1866**, where a person offers no resistance to the carrying off of his property on account of fear and does not himself deliver it, it was held not to be extortion but robbery.

Extortion can also happen in respect of valuable security or anything signed that can become a valuable security. For example, A threatens B to sign a promissory note without the amount or date filled in. This is extortion because the note can be converted to valuable security.

In **Romesh Chandra Arora's case 1960**, the accused took a photograph of a naked boy and a girl by compelling them to take off their clothes and extorted money from them by threatening to publish the photograph. He was held guilty of extortion.

In **R S Nayak vs A R Antuley and another AIR 1986**, it was held that for extortion, fear or threat must be used. In this case, chief minister A R Antuley asked the sugar cooperatives, whose cases were pending before the govt. for consideration, to donate money and promised to look into their cases. It was held that there was no fear of injury or threat and so it was not extortion.

Robbery

Robbery is a severe form of either theft or extortion. In certain circumstances, a theft or an extortion gravitates to robbery. Section 390 defines robbery as follows -

Section 390 - In all robbery there is either theft or extortion.

When theft is robbery - Theft is robbery if, in order to the committing of the theft or in committing the theft, or in carrying away or attempting to carry away property obtained by theft, the offender for that end, voluntarily causes or attempts to cause to any person death or hurt or wrongful restraint, or fear of instant death or of instant hurt or of instant wrongful restraint.

When extortion is robbery - Extortion is robbery if the offender at the time of committing the extortion is in the presence of the person put in fear, and commits the extortion by putting that person in fear of instant death, or of instant hurt, or of instant wrongful restraint to that person, or to some other person, and by so putting in fear, induces the person so put in fear then and there to deliver up the thing

extorted.

Thus, a theft becomes a robbery when the following two conditions are satisfied -

1. when someone voluntarily causes or attempts to cause
 1. death, hurt, or wrongful restraint or
 2. fear of instant death, instant hurt, or instant wrongful restraint
2. the above act is done
 1. in order to the committing of theft or
 2. committing theft or
 3. carrying away or attempting to carry away property obtained by theft.

For example, A holds Z down, and fraudulently takes Z's money from Z's clothes, without Z's consent. A has committed theft and in order to commit that theft, he voluntarily caused wrongful restraint to Z. Thus, A has committed robbery.

Robbery can be committed even after the theft is committed if in order to carrying away the property acquired after theft, death, hurt, or wrongful restraint or an instant fear of them is caused. The expression "for that end" implies that death, hurt, or wrongful restraint or an instant fear of them is caused directly to complete the act of theft or carrying away the property. In **Hushrut Sheik's case 1866**, C and D were stealing mangoes from tree and were surprised by B. C knocked down B and B became senseless. It was held to be a case of robbery.

Further, the action causing death, hurt, or wrongful restraint or an instant fear of them must be voluntary. Thus, in **Edward's case 1843**, a person, while cutting a string tied to a basket accidentally cut the wrist of the owner who tried to seize it. He was held guilty of only theft.

An extortion becomes a robbery when the following three conditions are satisfied -

1. when a person commits extortion by putting another person in fear of instant death, hurt, or wrongful restraint, and
2. such a person induces the person put in such fear to deliver the property then and there and
3. the offender is in the presence of the person put in such fear at the time of extortion.

For example, A meets Z on high road, shows a pistol, and demands Z's purse. Z in consequence surrenders his purse. Here, A has extorted the purse from Z by putting him in fear of instant hurt and being present at the time of committing the extortion in his presence, A has committed robbery. In another example, A meets Z and Z's child on the high road. A takes the child and threatens to fling it down a precipice, unless Z delivers his purse. Z in consequence, delivers the purse. Here, A has extorted the purse from Z by causing Z to be in fear of instant hurt of his child who is present there. Thus, A has committed robbery.

For extortion to become robbery, the fear of instant death, hurt, or wrongful restraint is must. Thus,

when A obtains property from Z by saying, "Your child is with my gang and will be put to death unless you send us ten thousand rupees", this is extortion but not robbery because the person is not put in fear of instant death of his child.

In presence of the person - The offender must be present where a person is put in fear of injury to commit the offence of robbery. By present, it means that the person should be sufficiently near to cause the fear. By his presence, the offender is capable of carrying out his threat immediately. Thus the person put in such fear delivers the property in order to avoid the danger of instant death, hurt or wrongful restraint.

In **Shikandar vs State 1984**, the accused attacked his victim by knife many times and succeeded in acquiring the ear rings and key from her salwar. He was held guilty of robbery.

Dacoity

As per section 391, a Robbery committed by five or more persons is dacoity. Section 391 - When five or more persons conjointly commit or attempt to commit robbery, or where the whole number of persons conjointly committing or attempting to commit a robbery, and persons present and aiding such commission or attempt, amount to five or more, every person so committing, attempting, or aiding is said to commit dacoity.

Conjointly implies a collective effort to commit or attempting to commit the action. It is not necessary that all the persons must be at the same place but they should be united in their efforts with respect to the offence. Thus, persons who are aiding the offence are also counted and all are guilty of dacoity.

It is necessary that all the persons involved must have common intention to commit the robbery. Thus, dacoity is different from robbery only in the respect of number of people committing it and is treated separately because it is considered to be a more grave crime.

In **Ram Chand's case 1932**, it was held that the resistance of the victim is not necessary. The victims, seeing a large number of offenders, did not resist and no force or threat was used but the offenders were still held guilty of dacoity.

In **Ghamandi's case 1970**, it was held that less than five persons can also be convicted of dacoity if it is proved as a fact that there were more than 5 people who committed the offence by only less than five were identified.

However, if 5 persons were identified and out of them 2 were acquitted, the remaining three cannot be convicted of dacoity.

Difference between Theft and Extortion.

No	Theft	Extortion
1	Definition: Section 378 of Indian Penal Code	Definition: Section 383 of Indian Penal Code

	<i>defines theft – “Whoever, intending to take dishonestly any movable property out of the possession of any person without that person's consent, moves that property in order to such taking, is said to commit theft.”</i>	<i>defines theft – “Whoever intentionally puts any person in fear of any injury to that person, or to any other, and thereby dishonestly induces the person so put in fear to deliver to any person any property, or valuable security or anything signed or sealed which may be converted into a valuable security, commits "extortion".</i>
2	Example: A being Z's servant, and entrusted by Z with the care of Z's plate, dishonestly runs away with the plate, without Z's consent. A has committed theft.	Example : A threatens to publish a defamatory libel concerning Z unless Z gives him money. He thus induces Z to give him money. A has committed extortion.
3	<i>In theft, property taken out without consent of the owner</i>	<i>In extortion, the consent of the owner is obtained but wrongfully</i>
4	<i>Theft may be only in respect of movable Property.</i>	<i>In Extortion, the property may be either movable or immovable.</i>
5	<i>There is no element of force</i>	<i>Property is obtained by putting a person in fear of injury and thereby inducing him to part with his property.</i>
6	<i>There is no delivery of property by the owner.</i>	<i>There is delivery of the Property.</i>

Difference between robbery and dacoity.

No	Robbery	Dacoity
1	Definition :Section 390 of the Indian Penal Code defines Robbery — In all robbery there is either theft or extortion. When theft is robbery –Theft is "robbery" if, in order to the committing of the theft, or in committing the theft, or in carrying away or attempting to carry away property obtained by the theft, the offender, for that end, voluntarily causes or attempts to cause to any person death or hurt or wrongful restraint, or fear of instant death or of instant hurt, or of	Definition : Section 391 of the Indian Penal Code defines Dacoity — “When five or more persons conjointly commit or attempt to commit a robbery, or where the whole number of persons conjointly committing or attempting to commit a robbery, and persons present and aiding such commission or attempt, amount to five or more, every person so committing, attempting or aiding, is said to commit "dacoity".

	instant wrongful restraint. When extortion is robbery –Extortion is "robbery" if the offender, at the time of committing the extortion, is in the presence of the person put in fear, and commits the extortion by putting that person in fear of instant death, of instant hurt, or of instant wrongful restraint to that person or to some other person, and, by so putting in fear, induces the person, so put in fear then and there to deliver up the thing extorted.	
2	Robbery can be committed by even one accused.	In Dacoity there must be five or more persons.
3	Robbery is not as serious as Dacoity	Dacoity is an aggravated and more serious form of robbery.
4	Punishment –Section 392 of the Indian Penal Code prescribes the punishment for robbery – Whoever commits robbery shall be punished with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine; and, if the robbery be committed on the highway between sunset and sunrise, the imprisonment may be extended to fourteen years.	Punishment – Section 395 of the Indian Penal Code prescribes the Punishment for dacoity – Whoever commits dacoity shall be punished with imprisonment for life, or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.
5	Cognizable, non-bailable, non-compoundable and triable by Magistrate of the first class.	Cognizable, non-bailable, non-compoundable and triable by Court of session.

Q. Define “wrongful restraint” and “Wrongful confinement” and distinguish between the two.

Section 339. Wrongful restraint

Whoever voluntarily obstructs any person so as to prevent that person from proceeding in any direction in which that person has right to proceed, is said wrongfully to restrain that person.

Wrongful restraint means preventing a person from going to a place where he has a right to go. In

wrongful confinement, a person is kept within certain limits out of which he wishes to go and has a right

to go. In wrongful restraint, a person is prevented from proceeding in some particular direction though free to go elsewhere. In wrongful confinement, there is restraint from proceeding in all directions beyond a certain area. One may even be wrongfully confined in one's own country where by a threat issued to a person prevents him from leaving the shores of his land.

Object – The object of this section is to **protect the freedom of a person** to utilize his right to pass in his. The slightest unlawful obstruction is deemed as wrongful restraint. Physical obstruction is not necessary always. Even by mere words constitute offence under this section. The main ingredient of this section is that when a person obstructs another by causing it to appear to that other that it is impossible difficult or dangerous to proceeds as well as by causing it actually to be impossible, difficult or dangerous for that to proceeds.

Obstruction:-Obstruction mans physical obstruction, though it may cause by physical force or by the use of menaces or threats. When such obstruction is wrongful it becomes the wrongful restraint. For a wrongful restraint it is necessary that one person must obstruct another voluntarily.

In simple word it means keeping a person out of the place where his wishes to, and has a right to be.

This offence is completed if one's freedom of movement is suspended by an act of another done voluntarily. Restraint necessarily implies abridgment of the liberty of a person against his will.

What is require under this section is obstruction to free movement of a person, the method used for such obstruction is immaterial. Use of physical force for causing such obstruction is not necessary. Normally a verbal prohibition or **remonstrance** does not amount to obstruction, but in certain circumstances it may be caused by threat or by mere words. **Effect of such word upon the mind of the person obstructed is more important than the method.**

Obstruction of personal liberty:Personal liberty of a person must be obstructed. A person means a human being, here the question arises whether a child of a tender age who cannot walk of his own legs could also be the subject of restraint was raised in **MahendraNathChakarvarty v. Emperor**. It was held that the section is not confined to only such person who can walk on his own legs or can move by physical means within his own power. It was further said that if only those who can move by physical means within their own power are to be treated as person who wishes to proceed then the position would become absurd in case of paralytic or sick who on account of his sickness cannot move.

Another points that needs our attention here is whether obstruction to vehicle seated with passengers would amount to wrongful restraint or not.

An interesting judgment of **Bombay High Court in Emperor v. Ramlala** : "Where, therefore a driver of a bus makes his bus stand across a road in such a manner, as to prevent another bus coming from behind to proceed further, he is guilty of an offence under Sec. 341 of the Penal Code of wrongfully restraining the driver and passengers of another bus".

"It is absurd to say that because the driver and the passengers of the other bus could have got down from that bus and walked away in different directions, or even gone in that bus to different destinations, in reverse directions, there was therefore no wrongful restraint" is the judgment of High Court which is applicable to busmen who suddenly park the buses across the roads showing their protest on some issues.

Illustrations-

1. I. A was on the roof of a house. B removes the ladder and thereby detains A on the roof.
2. II. A and B were co-owner of a well. A prevented B from taking out water from the well.

Section 340. Wrongful confinement.

Whoever wrongfully restrains any person in such a manner as to prevent that person from proceedings beyond certain circumscribing limits, is said "wrongfully to confine" that person.

Object – The object of this section is to **protect the freedom of a person** where his personal liberty has totally suspended or abolish, by voluntarily act done by another.

Prevent from proceedings: Wrongful confinement is a kind of wrongful restraint, in which a person kept within the limits out which he wishes to go, and has right to go.

There must be total restraint of a personal liberty, and not merely a partial restraint to constitute confinement.

For wrongful confinement proof of actual physical obstruction is not essential.

Circumscribing Limits: Wrongful confinement means the notion of restraint within some limits defined by a will or power exterior to our own.

Moral force: Detention through the exercise of moral force, without the accomplishment of physical force is sufficient to constitute this section.

Difference between Wrongful restraint and Wrongful Confinement.

No	Wrongful Restraint	Wrongful Confinement
1	Meaning :Wrongful restraint means obstructing a man from moving from one place to another where he has the right to be and wants to go.	Meaning :In wrongful confinement, a person is wrongfully restrained from proceeding beyond certain circumscribing limits.
2	Definition: Section 339 of the Indian Penal Code defines wrongful restraint as, "Whoever voluntarily obstructs any person so as to prevent that person from proceeding in any	Definition : Section 340 of Indian Penal code defines Wrongful confinement as "Whoever wrongfully restrains any person in such a manner as to prevent that person from proceeding

	<i>direction in which that person has a right to proceed, is said wrongfully to restrain that person."</i>	<i>beyond certain circumscribing limits, is said "wrongfully to confine" that person."</i>
3	Illustrations: I) A obstructs a path along which Z has a right to pass. A not believing in good faith that he has a right to stop the path. Z is thereby prevented from passing. A wrongfully restrains Z.	Illustrations: I) A causes Z to go within a walled space, and locks Z. Z is thus prevented from proceeding in any direction beyond the circumscribing line of wall. A wrongfully confines Z. II) A places men with firearms at the outlets of a building, and tells Z that they will fire at Z if Z attempts leave the building. A wrongfully confines Z.
4	Seriousness: Wrongful restraint is not serious as wrongful confinement and hence lesser punishment is provided by the code.	Seriousness: Wrongful confinement is serious offence and hence more punishment provided by the code.
5	Punishment : Whoever wrongfully restrains any person shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both.	Punishment : Whoever wrongfully confines any person shall be punished with simple imprisonment of either description for a term which may extend to one year, or with fine which may extend to one thousand rupees, or with both.

Q. Explain provisions of Rape mentioned in Section 375 IPC.

A man is said to commit "rape" if he—

penetrates his penis, to any extent, into the vagina, mouth, urethra or anus of a woman or makes her to do so with him or any other person; or

inserts, to any extent, any object or a part of the body, not being the penis, into the vagina, the urethra or anus of a woman or makes her to do so with him or any other person; or

manipulates any part of the body of a woman so as to cause penetration into the vagina, urethra, anus or any ~ of body of such woman or makes her to do so with him or any other person; or

applies his mouth to the vagina, anus, urethra of a woman or makes her to do so with him or any other person, under the circumstances falling under any of the following seven descriptions:—

First.—Against her will. Secondly.—Without her consent.

Thirdly.—With her consent, when her consent has been obtained by putting her or any person in whom

she is interested, in fear of death or of hurt.

Fourthly.—With her consent, when the man knows that he is not her husband and that her consent is given because she believes that he is another man to whom she is or believes herself to be lawfully married.

Fifthly.—With her consent when, at the time of giving such consent, by reason of unsoundness of mind or intoxication or the administration by him personally or through another of any stupefying or unwholesome Substance, she is unable to understand the nature and consequences of that to which she gives consent.

Sixthly.—With or without her consent, when she is under eighteen years of age.

Seventhly.—When she is unable to communicate consent.

Explanation 1.—For the purposes of this section, “vagina” shall also include labia majora.

Explanation 2.—Consent means an unequivocal voluntary agreement when the woman by words, gestures or any form of verbal or non-verbal communication, communicates willingness to participate in the specific sexual act:

Provided that a woman who does not physically resist to the act of penetration shall not by the reason only of that fact, be regarded as consenting to the sexual activity.

Exception 1.—A medical procedure or intervention shall not constitute rape.

Exception 2.—Sexual intercourse or sexual acts by a man with his own wife, the wife not being under fifteen years of age, is not rape.’

Ingredients: *This section consists of the following:*

1. Sexual intercourse by a man with a woman.
2. The sexual intercourse must be under the circumstances falling under any of the seven clauses of section 375.

Sexual Intercourse

A very important case that led to definite amendments in the section is ***Sakshi v. Union of India and Ors. Writ Petition (crl.) 33 of 1997***. Sakshi, an NGO focusing on violence against women, petitioned the Supreme Court of India to declare that “rape” under India’s criminal rape law (Indian Penal Code, or “IPC”, section 375) includes all forms of forcible penetration. Sakshi claimed that the current interpretation of the law, limited rape to forcible penile/vaginal penetration only. The prosecution submitted that Section 375 IPC should be interpreted in the current scenario, especially in regard to the fact that child abuse has assumed alarming proportion in recent times. The words ‘sexual intercourse’ in Section 375 IPC should be interpreted to mean all kinds of sexual penetration of any type of any orifice of the body and not the intercourse understood in the traditional sense. The words ‘sexual intercourse’ having not been defined in the Penal Code, there was no impediment in the way of the Court to give it a

wider meaning so that the various types of child abuse may come within its ambit and the conviction of an offender may be possible under Section 376 IPC. Sexual abuse of children, particularly minor girl, children by means and manner other than penile/vaginal penetration is common and may take the form of penile/anal penetration, penile/oral penetration, finger/vaginal penetration or object/ vaginal penetration. It is submitted that by treating such forms of abuse as offenses falling under Section 354 IPC or 377 IPC, the very intent of the amendment of Section 376 IPC by incorporating Sub-section 2(f) therein is defeated. The said interpretation is also contrary to the contemporary understanding of sexual abuse and violence all over the world.

The Court upheld the existing definition of rape as forcible penile/vaginal penetration only, refusing to include other forms of penetration within the ambit of rape as defined under IPC. But recommended the points raised by Prosecution to be considered by Law Commission.

Circumstances falling under the seven clauses

A man is guilty of rape if he commits sexual intercourse with a woman either against her will or without her consent as enumerated under clauses *firstly* to *seventhly* of section 375 IPC.

1. Against her will: Here, 'will' refers to the faculty of reasoning or the mental capacity to understand the consequences of doing or not doing a particular act. In **State of Punjab v. Gurmeet Singh** AIR 1996 SC 1393. it was held that the prosecutrix who had been abducted and subjected to sexual intercourse forcibly had been raped against her will.
2. Without her consent: Consent refers to the positive concurrence of a woman's will. This is based on the principle that a man is the best judge of what is good for him/her and can consider and give consent to what he feels is good for him. In **Queen v. Flattery**, 1877 QBD 410 it was held that the girl's consent was meant for a surgical operation and not for sexual intercourse and such a consent was manufactured and was not a ground for exemption from criminal culpability.
3. Consent obtained by fear of death or hurt of person or someone close: In **'State of Maharashtra v. Prakash'**, AIR 1992 SC 1275, it was ruled that where a gypsy woman was raped by police constables who beat her husband and threatened to put him in remand, it accounted for being a threat manufacturing a false consent. The infamous **Mathura Rape Case** AIR 1979 SC 185. held that where a woman was raped in a police station by police constables with no sign of injury or any threat of the same, the meekness towards such an act constituted consent.
4. Under the pretence of being her husband: **Queen v. Elbekkay**, 1995 Cri LR 163 held that even on the account of a man representing himself to be a woman's boyfriend to have sexual intercourse, it accounted to false pretence.
5. Under intoxication or unsoundness of mind by which capacity to consent is undermined: This provision was a consequence of the Criminal Amendment Act of 1983 according to which where

a woman has been intoxicated and is unable to judge or give consent to any act of sexual intercourse or where the woman is impaired with intelligence or social functioning skills, she is said to be intoxicated or unsound respectively.

6. Under eighteen years of age, irrelevant of consent: The consent of a woman is irrelevant and in fact, immaterial if she is below the prescribed age.
7. Unable to communicate consent

Exception to section 375:

“Exception 2.- Sexual intercourse or sexual acts by a man with his own wife, the wife not being under sixteen years of age, is not sexual assault.”

This exception has been added with a view to keep a check on husbands who may be inclined to take advantage of their marital status prematurely. A husband should not have a right to enjoy the person of his wife without taking into consideration her physical safety first.

The law presumes that a wife who is not under fifteen years of age has given her consent to her husband, by virtue of the marriage, to establish sexual contact with her. But if the wife is under fifteen years of age and her husband does have sexual intercourse with her under any of the six circumstances stated in this section, the husband would be guilty of rape.

This, however, is subject to section 198 (6) of the Code of Criminal Procedure, 1973 according to which no court shall take cognizance of an offence under section 376 of the Indian Penal Code where such offence consists of sexual intercourse by a man with his own wife, the wife being under fifteen years of age, if more than one year has elapsed from the date of the commission of the offence.

Since child marriage in India is not yet void and is only voidable, such a check was necessary to restrain men from taking advantage of their marital rights prematurely. No man can be guilty of rape on his own wife when she is over 15 years of age on account of the matrimonial consent that she has given.

In *Bishnudayal v. State of Bihar* AIR 1981 SC 39, where the prosecutrix, a girl of 13 or 14, who was sent by her father to accompany the relatives of his elder daughter's husband to look after her elder sister for some time, was forcibly 'married' to the appellant and had sexual intercourse with her, the accused was held liable for rape under section 376.

However under section 376 B, IPC sexual intercourse with one's own wife without her consent under a decree of judicial separation is punishable by 2 to 7 years imprisonment.

Q. Discuss the punishment for rape mentioned in section 376 IPC

Section 376 provides punishment for the offence of rape. The first sub-section says that whoever, except in the cases covered under the second sub-section, commits rape shall be punished with simple or rigorous imprisonment for a term which shall not be less than seven years but which may be for life

or for a term extending up to ten years, and shall also be liable to fine unless the victim is his own wife and not under twelve years of age, in which case, he shall be punished with simple or rigorous imprisonment for a term extending up to two years, or with fine, or with both. A proviso clause has been attached to this part of the section according to which the court may, for adequate and special reasons to be recorded in the judgment impose a lesser sentence than seven years.

According to the second sub-section, whoever (a) being a police officer rapes a woman (i) within the limits of his police station to which he is appointed; or (ii) in the premises of any station house situated in his police station or not; or (iii) in his custody or in the custody of his subordinate officer; or (b) being a public servant, takes advantage of his official position and rapes a woman in his official custody or in the custody of his subordinate public servant; or (c) being on the management or staff of a jail, remand home or other place of custody established by or under a law in force or of a women's or children's institution takes advantage of his official position and rapes any inmate of such jail, remand home, place or institution'; or (d) being on the management or staff of a hospital, takes advantage of his official position and rapes a women in that hospital; or (e) rapes a woman with the knowledge that she is pregnant; or (f) rapes a woman under twelve years of age; or (g) commits gang rape, shall be punished with rigorous imprisonment for a term of not less than ten years but which may be for life, and shall also be liable to fine.

There is a proviso attached to this sub-section also, like in the first sub-section, according to which the court may, for adequate and special reasons to be recorded in the judgment, impose a sentence of simple or rigorous imprisonment for a term of less than ten years.

There are three explanations attached to the section the first of which says that where one or more in a group of persons commit rape in furtherance of their common intention, it shall be deemed that each one of them has committed gang rape within the meaning of sub-section (2) (g). The second explanation states that the expression 'women's or children's institution' means an institution which is established and maintained for the reception and care of women or children, whether it is called an orphanage or a home for neglected women or children or a widow's home or by any other name.

According to the third explanation, the expression 'hospital' means the precincts of the hospital and includes the precincts of any institution for the reception and treatment of persons during convalescence or of persons requiring medical attention or rehabilitation.

One of the highlights of section 376 as explained above is the provision for minimum mandatory sentence of seven years in case of ordinary rape and of ten years in case of custodial rape. But by providing that the court is free to give a lesser sentence in both cases for which adequate and special reasons are to be given in the judgment, the provision has been watered down.

The result of this is that there are any number of convictions in rape cases in which the sentences

awarded have been less than the minimum mandatory. Another special feature of the section is that it has now been realised that custodial rape deserves to be taken note of as a much more serious crime than an ordinary rape and, therefore, deterrent punishment needs to be imposed on the rapist in such a case. The third important feature of the section is the provision for more severe penalty in cases of gang rape.

The Supreme Court has ruled in **Balwant Singh v. State**, that even if the prosecution has failed to prove the exact number of men who had raped the victim, those must be convicted against whom the charge has been proved beyond doubt. Where a sadhu having profound knowledge of the Vedanta philosophy had the surreptitious habit of luring little girls into his mandir through a procuress and of raping them, and the truth came out after he raped an eight year old girl, it was held that the modus operandi of the sadhu of performing kumaripuja, and in the garb of that raping them later on, necessitated a deterrent sentence of ten years' rigorous imprisonment, and there was no ground whatsoever of leniency.

Where the families of the accused and the victim are prepared to take a lenient view in a rape case, the same cannot bind a court in any manner. Genuine repentance on the part of the accused who was in his twenties, however, led the court to reduce the sentence of four years' rigorous imprisonment to two years. Young age of the offender can be taken into consideration while sentencing in rape cases.

Where a father raped his own daughter of tender years, deterrent punishment of seven years' rigorous imprisonment and a fine of one thousand rupees was held to be appropriate. A sentence of only six months' rigorous imprisonment on an accused who raped a six year old girl makes mockery of justice, and because of the beastliness of the crime it deserved to be increased much more.

Where an Army Jawan visited a brothel and while returning kidnapped a four month old female child and later raped the child as a result of which she died, it was held that the accused was guilty under section 201 for throwing the dead body in a well from which it was taken out after about twenty four hours, and under sections 366, 376 and 302, and the maximum penalty of imprisonment for life was given to him for rape.

The first explanation shows that rape by one or more in furtherance of common intention would amount to gang rape. In a case, gang rape was committed by two men and there was unexplained delay of nine days in lodging the complaint. The victim was desirous to marry one of the accused and she admitted that she made the report unwillingly on being pressurised by her parents.

There were various infirmities in the prosecution evidence including the report of the chemical examiner. It was held that the accused were not guilty and the presumption under section 114-A of the Evidence Act was not attracted. In another case, a young widow was returning from a holy place with her seventy years old father-in-law whose all the five sons had died.

One of the three accused persons held back the old man while the others raped her in turn behind the

bushes. Her body was never found though her sari was recovered from that very place. It was held that the accused were guilty of committing gang rape.

Where four accused persons were charged with committing gang rape of an unmarried girl after forcing their entry into her house, it was held that in view of the first explanation under section 376, it was not necessary to prove as to who and how many of them had committed gang rape once their common intention was established.

In **State v. Shri Narayan** the accused who was a relation committed rape on a married rural woman. It was observed that delay in filing complaint was not sufficient to doubt the prosecution version. The prosecutrix and her husband had no strong reason to implicate the accused falsely. The witnesses were natural and their testimony was reliable, and the same was corroborated by medical evidence. The acquittal of the accused was set aside.

Where the victim of a rape was dead and as such not available for examination but the criminal act of the accused was proved by other evidence, it was held that the non-availability of the victim was no ground for acquittal. In **State v. Sunder Lal**, the Supreme Court observed that the victim of rape, a thirteen year old girl, could not have forgotten the face of the man who had committed the ghastly crime on her.

It was not a case where the victim had a mere fleeing glimpse of the accused. There was light at the place of occurrence. The identity of the accused could be said to be amply established by her evidence and hence his conviction on that basis was proper.

In **Priya Patel v. State of Madhya Pradesh**, the Madhya Pradesh High Court was of the view that though a woman cannot commit rape, but if a woman facilitates the act of rape, explanation to section 376 (2) comes into operation and she can be prosecuted for gang rape. The Supreme Court held that a woman cannot be said to have intention to commit rape and so cannot be held guilty of gang rape.

In **State of Madhya Pradesh v. Santosh Kumar**, the only reason for reducing sentence of the accused who had raped a less than twelve years old minor was that he belongs to Scheduled Tribe. The Supreme Court, allowing the appeal of the State, held that this is not an adequate and special reason for reduction of sentence.

In **Dildar Singh v. State of Punjab**, the accused teacher raped his minor student. The Supreme Court held that the fact that the accused has a family to maintain and the fact that the prosecutrix has since got married cannot be treated as mitigating circumstances to reduce the sentence.

Custodial Rape

Police officers, public servants, officers of a jail, remand home, women's hostel, children's hostel, hospital, etc., are brought under the purview of Sec. 376(2). These persons occupy a place of superiority,

authority and powers. They can induce, coerce the helpless women. They can have undue influence over the staff. Besides it, new Section also defines clearly “gang rape” and rape on pregnant woman, which are also included in custodial rape. Thus, according to Section 376 (2), a “Custodial Rape” means and includes,—

1. Police Officer: A police officer committing rape in his local area to which he is appointed, or in any [police station whether or not situated in such local area, on a woman in his custody or in the custody of a police officer subordinate to him.

2. Public Servant: A public servant taking advantage of his official position and committed rape on ; a woman in his custody as such public servant or in the custody of a public servant sub-ordinate to him.

3. Officers of a jail, remand home, women’s hostel, children’s hostel, etc.: Any person being on the management or on the staff of a jail, remand home or other place of custody or of a woman’s or children’s institution, taking advantage of his official position and committing rape on any inmate of the institution.

4. Management of hospital: Any person concerned with management or being on the staff of a hospital, committing rape on a woman who is receiving treatment in the hospital.

5. Pregnant woman: If a pregnant woman is raped by any person is also deemed as custodial rape.

6. Girl below the age of 12 years: If a girl below the age of 12 years is raped, such rape is also deemed as custodial rape.

7. Gang Rape: If a woman is raped by more than two men is called as Gang Rape, and this type of rape is also deemed as Custodial Rape.

Punishment under Sec. 376(2): The punishments imposed under Section 376.(2) are severe and graver than the punishment imposed under Section 376(1). It is because of the incorporation of amendment to that Section by Criminal Law (Amendment) Act, 1983.

State of Maharashtra vs. Madhukar N. Mardikar (1991 (1) SCC 57): In this case, a police inspector raided a brothel house, and arrested prostitutes and confined them in the Police Station. He demanded the prosecutrix-one of the prostitutes to sleep with him.

She did not agree. He enjoyed sex with her forcefully. She gave the complaint to the higher authorities. The accused contended that the prosecutrix was a prostitute; hence the provisions of rape cannot be attributed. The trial Court imposed the punishment on the accused-sub-inspector.

The High Court reversed the judgment of the trial Court. On appeal, the Supreme Court confirmed the punishment on the accused, and observed:

“The unchastely of a woman could not make her open to any and every person to violate her person as and when he wishes. She is entitled to protect her person if there is an attempt to violate it against her wish. She is equally entitled to the protection of law. Therefore, merely because she is a woman of easy

virtue, her evidence cannot be thrown overboard. The accused being police officer should abide the law and should protect the helpless. Here the accused violated the duties entrusted to him."

Intercourse by public servant with woman in his custody: Section 376-B lays down that whoever, being a public servant, takes advantage of his official position and induces or seduces, any woman, who is in his custody as such public servant or in the custody of a public servant subordinate to him, to have sexual intercourse with him, such sexual intercourse not amounting to the offence of rape, shall be punished with imprisonment of either description for a term which may extend to five years and shall also be liable to fine.

Intercourse by superintendent of jail, remand home, etc.: Section 376-C lays down that whoever, being the superintendent or manager of a jail, remand home or other place of custody established by or under any law for the time being in force or of a women's or children's institution takes advantage of his official position and induces or seduces any female inmate of such jail, remand home, place or institution to have sexual intercourse with him, such sexual intercourse not amounting to the offence of rape, shall be punished with imprisonment of either description for a term which may extend to five years and shall also be liable to fine.

Intercourse by any member of the management or staff of a hospital with any woman in that hospital:Section 376-D says that whoever, being on the management of a hospital or being on the staff of a hospital takes advantage of his position and has sexual intercourse with any woman in that hospital, such sexual intercourse not amounting to the offence of rape, shall be punished with imprisonment of either description for a term which may extend to five years and shall also be liable to fine.

Santosh Kumar vs. State of M.P. (AIR 2006 SC 3098):The accused/appellants were R.T.C. driver and conductor. While the prosecutrix was travelling in a bus, the accused raped her. She protested and injuries on her chest and stomach. The accused/appellant argued that there were no injuries on her private parts. One of the prosecution witnesses became hostile.

Judgment: The trial Court convicted them under Section 376 (2) (g). On appeal, the High Court confirmed the trial Court's judgment. The Supreme Court too confirmed the trial Court's judgment.

Q.Distinction / Difference between Adultery and Rape

No	Adultery	Rape
1	Adultery is an offence defined in Section 497 under chapter 20 of the Indian Penal Code, dealing with the offences marriage	Rape is an offence defined under Section 375 and custodial rape under Section 376B to 376D. It is defined in chapter 16 of the Indian Penal Code relating to offences Affecting the human body.
2	Definition :	Definition :

	Whoever has sexual intercourse with a person who is and whom he knows or has reason to believe to be the wife of another man, without the consent or connivance of that man, such sexual intercourse not amounting to the offence of rape, is guilty of the offence of adultery, and shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both. In such case the wife shall not be punishable as an abettor (Section 497).	A man is said to commit "rape" who, except in the case hereinafter excepted, has sexual intercourse with a women under circumstances falling under any of the six following description : First - Against her will. Secondly - Without her consent. Thirdly - With her consent, when her consent has been obtained by putting her or any person in whom she is interested in fear of death or of hurt. Fourthly - With her consent, when the man knows that he is not her husband, and that her consent is given because she believes that he is another man to whom she is or believes herself to be lawfully married. Fifthly - With her consent, when, at the time of giving such consent, by reason of unsoundness of mind or intoxication or the administration by him personally or through another of any stupefying or unwholesome substance, she is unable to understand the nature and consequences of that to which she gives consent. Sixthly - With or without her consent, when she is under sixteen years of age. (Section 375)
3	Offence against whom? Adultery is an offence against the husband.	Offence against whom? Rape is an offence against the women herself irrespective of married or unmarried.
4	Consent: In the case of Adultery the consent	Consent: Consent is a defence to rape. In the

	of the woman is immaterial. In fact, the woman is always a willing and consenting party to sexual intercourse.	case of rape of the offence is committed against the will and without the consent of the women. However, if the girl is under sixteen years of age the offence can be committed even with her consent.
5	Aggrieved Party: The husband is the aggrieved party.	Aggrieved Party : Women herself
6	Adultery may be committed only when the woman is married and she is the wife of someone.	Rape can be committed on any women married or unmarried.
7	Adultery cannot be commit with 1) an unmarried woman, 2) a widow 3) a married woman when her husband consents to or connives at it, or 4) a divorced women	Rape cannot committed when the women has consented for the sexual intercourse except when the women is under 16 years of age.
8	Punishment : Adultery is less serious offence and punishment may extend up to five years imprisonment or fine or both.	Punishment : Rape is more serious offence and punishment may extend upto life imprisonment or ten years which may be reduced adequate or special reasons.

Q. What is defamation? What defences are available to a person who is charged with the offence of defamation.?

Defamation is a crime against the reputation of a person. Defamation is also a tort. It is one of the most important rights of a person or right of his reputation. If any person by way of libel i.e. written words or by sullenner i.e. spoken words lowers the reputation of a person then it is called defamation. The reputation must be lowered among the reasonable person including relation of a person.

DEFINITION OF DEFAMATION :-Section 499 of IPC says that whoever by words, spoken or written or by sign or by visible representation, makes or publishes any imputation concurring any person invading to harm or knowing or having reason to believe that such imputation will harm the reputation of such person is said, except in the case of hereinafter accepted, to defamed that person.

This section 499 of IPC contains the following things :-

1. Whoever makes publishes any imputation concurring any person.
2. Such imputation must be made by words, signs or by visible representation.
3. Such imputation must be made or published with the intention of harming or with the knowledge or having reason to believe that it will harm the reputation of such person.

ESSENTIAL OF THIS SECTION: The following are the essentials of this section regarding defamation:-

1. PERSON :- Person means the person who publishes are the person who makes an imputation. Person includes like editor or a journal, the printer or the writer of the articles in the paper.
2. PUBLICATION :- The expression 'makes or publishes' has to be understood. The meaning of this expression is publication. Publication of the defamatory statement is essential. If a person merely writes out a defamatory matter but does not publish, then the same will not be defamation. Publication means the defamatory statement, must come into the notice of third person. Because the reputation of a person remains in the eye of third person. Publication may be done by :-
 1. An act which conveys the defamatory statement to a third person.
 2. By drawing the attention of others towards the defamatory matters already existed.

Thus, this communication of defamatory matter to the person defamed and to the third person is necessary.

A case **KrishanaNand v/s Emperor** : The Allahabad High Court held that the publication to a third person was deemed to be necessary. However, in case of best land, the presumption being that it was needed by other. Its sending or pasting ward amount to publication.

3. Publication of defamatory statement must be intending to harm the reputation of another person:- The information to cause harm is the most essential part of an offence under section 499 of IPC. There must be an intention of harming or knowing or having reasons to believe that the imputation will harm the reputation. It is sufficient that there was reason to believe that the imputation made would harm the reputation.

There are some explanations attached to this section:-

1. Explanation No. 1:- If any amount of defamation is against the deceased person and the imputation would harm the reputation of that person of living and is intended to be harmful to the feelings of the family or relatives.
2. Explanation No.2 : This may amount to defamation to take an imputation concerning to a company or association selection of such person.
3. Explanation No.3: An imputation in the form of an alternative or expressed ironically may amount to defamation.

4. Explanation No.4 :- No estimate is said to harm a person's reputation unless that imputation directly or indirectly in the estimation of others, lowers the normal instinctual character of that person in respect of caste or if his calling in respect of his caste lowers, the creditor of that person in a locality or in a state is generally considered as disgraceful. Such as A draws a picture of Z running with B's watch intending to cause it to be believed that Z has stolen B's watch. This is defamation unless it falls within one of exception.

EXCEPTIONS: Following are the exceptions to this offence :-

1. True statement : It is not defamation if anything which is true concerning only person if it is for the public interest or welfare good. The imputation should be in good faith and for public.
2. Public conduct of public servant:- It is not defamation to express, in good faith any opinion whatever respecting the conduct of a public servant in discharge of his public sanctions or respecting his character so far as his character appears in that conduct and not further.
3. Public quotation: It is not a defamation to express in good faith any opinion whether respecting the conduct of any person so far his character appears in that conduct and no further.
4. Publication of court proceedings. It is not defamation to publish a substantial true report of the proceedings of court of justice.
5. Conduct of witness in the court:- It is not a defamation to express in good faith any opinion whatever respecting the writ of any case, civil or criminal which has been decided by a court of justice or respecting the conduct of any person. Along with witness or any agent in any such case or respecting the character of such person as far as his character appears in the conduct and no further.
6. Merit of public performance :- It is not defamation to express in good faith any opinion respecting the merit of any performance. Which is submitted to the judgment of public or respecting the authority that appear in such performance and no further.
7. Censure passed in good faith:- It is not a defamation of a person to pass, In good faith any censure on the conduct of that person in consented matter.
8. It is not defamation to perform in good faith, an accusation against any person to any of these who has lawful authority over that person with respect to subject matter or within this exception.
9. It is not defamation to make an imputation if the imputation is made in good faith for the protection of the interest of the person making it.
10. It is not defamation to convey a caution that is intended in the good faith of the person.

These are the exceptions to the offence of defamation. Under these exceptions no offence of defamation is proved.

PUNISHMENT FOR THE ACT OF DEFAMATION: Under section 500 of IPC it is provided that the punishment for the offence of defamation , which is simple imprisonment for a term which may extend

to two years or with fine or with both.

Defences

1. Justification of truth – In an action for defamation, truth of the defamatory statement is a complete defence. It is not necessary for the defendant to prove that every words of the defamatory statement is true. It will be sufficient, if the statement through not perfectly true is substantially correct.

2. Fair & Bona-fide Comment – Every person is entitled to express his opinion on matters of public interest is a good defence in an action for defamation.

3. Privileged Statement – There are certain occasion which are so important that those making statement up on them are not liable in defamation, even through their statement are untrue & even malicious. The privilege is of two kinds-

(A) *Absolute Privilege* – A statement is absolute privileged when no action lies even through it is false, deliberate or defamation & made out of malice. The defence of absolute privilege is available in :-

(a) Parliamentary Proceedings; (b) Judicial Proceedings; (c) Military & Naval Proceedings; (d) State Proceedings.

(B) *Qualified Privilege* – In certain circumstances it is thought desirable that reflection on the reputation of others although untrue, should not give rise to tortious liability provided that they were not published with malice. The defence of qualified privilege in an action against defamation may extend to the statement has been made in discharge of a duty, or when the statement is made in self defence or in public interest

4. Apology – The offer or the making of an apology is not at common law, a defence although it may be given in evidence in mitigation of damage. The plea of apology is maintainable only when the person defamed accepted the apology.

Innuendo - Sometimes the statements may not be Prima facie defamatory and they appear to be innocent in their natural & ordinary sense but because of some latent or secondary meaning the plaintiff may prove that they are defamatory & carry a libelous meaning with reference to him. e.g., where a proprietor of a newspaper published erroneously the news which he believed to be true, that the plaintiff (a girl) had given birth to twins although she was married only a month ago, he was held liable for defamation as it indirectly caused as perisions on the character of the girl for giving birth to an illegitimate child.

Q. Explain in detail the concept of Abetment.

A crime may be committed by one or more persons involved in crime then their liability depends upon the extent of their participation. Thus this rule of joint liability comes into existence. But there is an important fact which is that the law has a knowledge about the abettor, who has given help to another

in crime. This rule is very ancient and was applied in Hindu Law also. In English Law, criminals are divided in four categories, but in India there is only one distinction between the doer and his helper who is known as abettor. The crime of abetment come under section 107 to 120 of the IPC. Section 107 defines 'abetment of a things' and section 108 defines about the abettor.

SECTION 107 IPC 'ABETMENT OF THING': A person abets the doing of a thing by instigation:-

1. Instigate any person to do that things
2. by conspiracy.
3. by aids.

BY INSTIGATION ANY PERSON TO DO THAT THINGS: - According to the first clause of section 107 a person abets of thing that instigates any person to do that thing. A person is said to instigate another when he incites, urges, encourages, provokes, counsels, procures or command him to do something.

EXPLANATION :- A person who by willful misrepresentations or by willful concealment of a material fact, which he is bound to disclose, voluntary causes or procures or attempts to cause or procures a thing to be done, is said to instigate the doing of that things.

ILLUSTRATION: -A Police Officer is authorised by a warrant from a court of justice to apprehend Z. B knowing that fact and also that C is not Z, willfully represents to A that C is Z and thereby intentionally causes A to apprehend C. Here B abets by instigation the apprehension of C.

In **Gurbachan Singh v/s Sat Pal Singh, AIR- 1990**, A newly wedded girl died of burns. The father of deceased had stated in FIR that the deceased committed suicide because of harassment and constant taunt for insufficient dowry. It was held by the SC that the deceased had committed suicide at the instigation of her husband and in laws and it was not a case of accidental death.

2. ABETMENT BY CONSPIRACY: The second clause of this section states that a person abets the doing of a thing who engages with one or more other persons in conspiracy for the doing of that thing. If an act or illegal omission takes place in pursuance of that conspiracy and in order to doing of that thing then it is called abetment by conspiracy. If an act or illegal omission takes place in prurience of that conspiracy.

ILLUSTRATION: -A consents with B a plans for poisoning Z. It is agreed that A shall administer the poison. B then explains the plan to C mentioning that a third person is to administer the poison, but without mentioning A's name. C agrees to procure the poison and deliver it to B for the purpose explained 'A' administers the poison and Z dies. Here A and C have not conspired together, yet C has therefore committed the offence and is liable for punishment.

In **Rup Devi v/s State : 1955**. The deceased & his wife had strained relationship. The wife had illicit intimacy with the accused. The deceased was scheduled to go to 'Sadhu' on a particular day. The wife told the accused about this programme even though she knew that the accused was waiting for the opportunity to kill her husband and taking the opportunity he killed him. It was held that the wife was

not guilty of abetment by conspiracy, even though her conduct was open to censure.

3. ABETMENT BY AIDING: The third clause of the section says that, "A person abets the doing of thing who intentionally aids by any act in the illegal omission of the doing of that thing.

EXPLANATION :- Whoever either prior to or at the time of the commission of an act does anything in order to facilitate the commission of that act thereby facilitates the commission thereof, is said to aid the doing of that act.

ILLUSTRATION :- If the servant keeps the gate open of the master's house so that thieves may enter and thieves do not come, he cannot be held to have abetted the commission of theft.

In Ram Kumar v/s State of H.P. 1995. The 19 years old prosecutrix was taken to the police station by the accused that kept watch over her husband while she was raped by the co-accused. In this custodial rape the accused turned deaf ears towards the cries of the prosecutrix and did nothing to help her. The SC implied abetment of the accused for abetment of rape.

SECTION 108 OF IPC: ABETTOR : A person can become an abettor in two ways :-

1. When he abets the commission of an offence : Example : Where he abets 'B' to commit murder of 'Z'. Here A is an abettor.
2. When he abets the commission of an offence it is committed by a person capable by law to commit an offence with the same intention or knowledge as that of the abettor.

Example : "A" abets B, a five year old child, to commit murder of Z, he is still an abettor under the 2nd category because even though the child will not be guilty of anything by virtue of the protection given to him by **section 82** of the IPC.

To define the abettor the explanation must be read as :-

EXPLANATION No.1 :- The abetment of the illegal omission of an act may amount to an offence although the abettor may not himself be bound to do that act.

ILLUSTRATION :- 'A' instigates B to murder C. B refuses to do so. A is guilty of abetting B to commit murder.

Explanation No.2 :- To constitute the offence of abetment it is not necessary that the particular act of abettor should be committed.

ILLUSTRATION :- 'A' instigates B to Murder D. B in pursuance of the instigation stabs D. D recovers from wound. A is guilty of instigation B to commit murder.

Explanation No. 3 :- It is not necessary that the abettor & the person abetted must have same guilty intention or knowledge.

ILLUSTRATION :- 'A' with a guilty intention, abets a child or a lunatic to commit an act which would be an offence if committed by a person capable by law of committing an offence and having the same intention as A. Here A, whether the act be committed or not is guilty of abetting an offence.

EXPLANATION NO. 4:-The abetment of an offence being an offence the abetment of such an abetment is also an offence.

ILLUSTRATION: -'A' instigates B to instigate C to murder Z. B accordingly instigates C to murder Z and C commits that offence in consequences of B's instigation. B is liable to be punished for his offence with the punishment for murder and as A instigated B to committed the offence. A is liable to the same punishment.

EXPLANATION NO 5;-It is not necessary to the commission of the offence of abetment by conspiracy that the abettor should bigamy concert the offence with the person who commits it. It is sufficient if he engages in the conspiracy.

ILLUSTRATION:'A' concert with B a plan of poisoning Z. It is agreed that A shall administer the poison. B then explains the plan to C mentioning that a third person is to administer the poison but without mentioning A's name C agrees to procure the poison & deliver it to B the purpose of its being used in the matter explained. 'A' administers the poison, Z dies in consequence, Here though A and C did not conspired together, Yet C has been engaged in the conspiracy in pursuance of which Z had been murdered. C has therefore committed the offence defined in the section and is liable to the punishment of murder.

Q. Discuss in brief various offences related to marriage

Section 493-Cohabitation caused by a man deceitfully inducing a belief of lawful marriage: Every man who by deceit causes any woman who is not lawfully married to him to believe that she is lawfully married to him and to cohabit or have sexual intercourse with him in that belief, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

Section 496-Marriage ceremony fraudulently gone through without lawful marriage: Whoever, dishonestly or with a fraudulent intention, goes through the ceremony of being married, knowing that he is not thereby lawfully married, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

The essential elements of both the sections i.e. 493 and 496, is that the accused should have practiced deception on the woman, as a consequence of which she is led to believe that she is lawfully married to him, though in reality she is not. In s 493, the word used is 'deceit' and in s 496, the words 'dishonestly' and 'fraudulent intention' have been used. Basically both the sections denote the fact that the woman is cheated by the man into believing that she is legally wedded to him, whereas the man is fully aware that the same is not true. The deceit and fraudulent intention should exist at the time of the marriage **KAN Subrahmanyam v. J Ramalakshmi(1971) Mad LJ(Cr) 604**. Thus *mens rea* is an essential element of an

offence under this section.

Section 494-Marrying again during lifetime of husband or wife: Whoever, having a husband or wife living, marries in any case in which such marriage is void by reason of its taking place during the life of such husband or wife, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

In Bigamy case, the second marriage as a fact, that is to say, the essential ceremonies constituting it must be proved. Admission of marriage by the accused is not the evidence of it in bigamy case. Under section 494 and 109 of IPC the evidence of witness called to prove the marriage ceremonies showed that the essential ceremonies had not been performed. On admission of the accused in a written statement that the parties married after the first marriage was dissolved & was not justified, In a case **Kanwal Ram v/s Himachal Pradesh Administration 1966.**

An another case of **Shanti Dev Barma v/s KanchanPrava Devi 1991 Orissa**, "it was held that No plea was raised that the second marriage was performed as per custom which dispensed with 'saptapadi' oral evidence was adduced that the accused and his alleged second wife were living as husband and wife. It was not found sufficient to draw an inference as to performance of ceremonies essential for valid marriage. The accused was entitled to be acquitted.

Cohabitation caused by a man deceitfully inducing a belief of lawful marriage. Dishonestly or fraudulently going through a marriage ceremony knowing that no lawful marriage is hereby created Bigamy i.e. marriage again during the lifetime of the husband or wife where such marriage is void. If the former marriage is concealed from the person with whom the subsequent marriage is contracted, the punishment is ten years or fine or both.

The exception to section 494 provides the circumstances where a woman in the life-time of one husband or vice versa can marry another without incurring the offence of bigamy. It provides that section 494 does not extend :-

- a) To any person whose marriage with such husband or wife has been declared void by a court of competent jurisdiction.
- b) To any person who contracts a marriage during the life of a former husband or wife, if such husband or wife at the time of the subsequent marriage shall have been continually absent from such person for the space of seven years, and shall not have been heard of by such person as being alive within that time, such marriage can takes place.

Section 495-Same offence with concealment of former marriage from person with whom subsequent marriage is contracted: Whoever commits the offence defined in the last preceding section having concealed from the person with whom the subsequent marriage is contracted, the fact of the former marriage, shall be punished with imprisonment of either description for a term which may extend to ten

years, and shall also be liable to fine.

The essential ingredients are:

- existence of a previous marriage
- second marriage to be valid
- second marriage to be void by reason of first husband or wife living

Section 497-Adultery: Whoever has sexual intercourse with a person who is and whom he knows or has reason to believe to be the wife of another man, without the consent or connivance of that man, such sexual intercourse not amounting to the offence of rape, is guilty of the offence of adultery, and shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both. In such case the wife shall not be punishable as an abettor.

Before the IPC was enacted, adultery was not an offence in India either for men or women. It was also not included in the first draft of the penal code. However, the second Law Commission it. The Law Commissioner noted that the then prevalent social infrastructure and the secondary and economically dependent position of women were not conducive to punish adulterous men. Further, they noted, that a wife was socially conditioned to accept her husband's adulterous relationship as polygamy was an everyday affair. Thus they incorporated adultery as an offence punishing only adulterous men.

In **Kashuri v. Ramaswamy(1979) CrLJ 741 (Mad)** it was held that the proof of sexual intercourse has to be inferred from the facts and circumstance of a case as direct evidence can rarely be proved.

The essential ingredients are:

- sexual intercourse
- woman must be married
- knowledge
- consent or connivance of husband
- should not constitute rape

Section 498-Enticing or taking away or detaining with criminal intent a married woman: Whoever takes or entices away any woman who is and whom he knows or has reason to believe to be the wife of any other man, from that man, or from any person having the care of her on behalf of that man, with intent that she may have illicit intercourse with any person, or conceals or detains with that intent any such woman, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

The essential ingredients are:

- takes or entices away
- woman to be a married woman
- knowledge

- taken from control of husband or person having care of her on behalf of her husband
- intention to have illicit intercourse
- conceals or detains such women

In **Alamgir v. State of Bihar** AIR 1969 SC 436, it was observed that if a man knowingly goes away with the wife of another in such a way to deprive the husband of his control over her, with the intent to have illicit intercourse, then it would constitute an offence within the meaning of the section.

Section 498A-Cruelty: Matrimonial Cruelty in India is a cognizable, non bailable and non-compoundable offence. It is defined in Chapter XXA of I.P.C. under Section 498A as

Husband or relative of husband of a woman subjecting her to cruelty.

Whoever being the husband or the relative of the husband of a woman, subjects her to cruelty shall be punished with imprisonment for a term, which may extend to three years and shall also be liable to a fine.

Explanation – for the purpose of this section, “cruelty” means:

- any willful conduct which is of such a nature as is likely to drive the woman to commit suicide or to cause grave injury or danger to life, limb or health (whether mental or physical) of the woman; or
- harassment of the woman where such harassment is with a view to coercing her or any person related to her to meet any unlawful demands for any property or valuable security or is on account of failure by her or any person related to her to meet such demand.

For safeguarding the interest of a woman against the cruelty they face behind the four walls of their matrimonial home, the Indian Penal Code, 1860 was amended in 1983 and S.498A was inserted which deals with ‘Matrimonial Cruelty’ to a woman. The section was enacted to combat the menace of dowry deaths. It was introduced in the code by the Criminal Law Amendment Act, 1983 (Act 46 of 1983). By the same Act section 113-A was added to the Indian Evidence Act to raise presumption regarding abetment of suicide by married woman. The main objective of section 498-A of I.P.C is to protect a woman who is being harassed by her husband or relatives of husband.

Section 113-A of Indian Evidence Act, reads as follows:

When the question is whether a person has committed the dowry death of a woman and it is shown that soon before her death such woman has been subjected by such person to cruelty or harassment for, or in connection with, any demand for dowry, the Court shall presume that such person had caused the dowry death.

Explanation- For the purpose of this section ‘dowry death’ shall have the same meaning as in section 304-B of the Indian Penal Code (45 of 1860).

The object with which section 498A IPC was introduced is amply reflected in the Statement of Objects and Reasons while enacting Criminal Law (Second Amendment) Act No. 46 of 1983. As clearly stated

therein, the increase in number of dowry deaths was a matter of serious concern. The extent of the evil was commented upon by the Joint Committee of the Houses to examine the work of the Dowry Prohibition Act, 1961. In some of cases, cruelty of the husband and the relatives of the husband culminated in suicide by or murder of the helpless woman concerned. Therefore, it was proposed to amend IPC, the Code of Criminal Procedure, 1973 (in short 'the Cr.P.C') and the Evidence Act suitably to deal effectively not only with cases of dowry deaths but also cases of cruelty to married women by the husband, in-law's and relatives. The avowed object was to combat the menace of dowry death and cruelty **Sushil Kumar Sharma vs. Union of India; JT 2005(6) SC266.**

Meaning of Cruelty

Cruelty includes both physical and mental torture. Wilful conduct in Explanation (a) to section 498A, I.P.C. can be inferred from direct and indirect evidence. The word cruelty in the Explanation clause attached to the section has been given a wider meaning.

It was held in **Kaliyaperumal vs. State of Tamil Nadu 2004 (9) SCC 157**, that cruelty is a common essential in offences under both the sections 304B and 498A of IPC. The two sections are not mutually inclusive but both are distinct offences and persons acquitted under section 304B for the offence of dowry death can be convicted for an offence under sec.498A of IPC. The meaning of cruelty is given in explanation to section 498A. Section 304B does not contain its meaning but the meaning of cruelty or harassment as given in section 498-A applies in section 304-B as well.

In the case of **Inder Raj Malik vs. Sunita Malik 1986 (2) Crimes 435**, it was held that the word 'cruelty' is defined in the explanation which *inter alia* says that harassment of a woman with a view to coerce her or any related persons to meet any unlawful demand for any property or any valuable security is cruelty. The Supreme Court, in **Mohd. Hoshan vs. State of A.P. 2002 Cr.L.J 4124**, observed: "Whether one spouse has been guilty of cruelty to the other is essentially a question of fact. The impact of complaints, accusation or taunts on a person amounting to cruelty depends on various factors like the sensitivity of the victim concerned, the social background, the environment, education etc. Further, mental cruelty varies from person to person depending on the intensity of the sensitivity, degree of courage and endurance to withstand such cruelty. Each case has to be decided on its own facts whether mental cruelty is made out"

Sec 498A and the Allegation of Misuse: In the last 20 years of criminal law reform a common argument made against laws relating to violence against women in India has been that women misuse these laws. The police, civil society, politicians and even judges of the High Courts and Supreme Court have offered these arguments of the misuse of laws vehemently. The allegation of misuse is made particularly against Sec 498A and against the offence of dowry death in Sec 304B. One such view was expressed by former Justice K T Thomas in his article titled 'Women and the Law', which appeared in The Hindu. The 2003

Malimath Committee report on reforms in the criminal justice system also noted, significantly, that there is a “general complaint” that Sec 498A of the IPC is subject to gross misuse; it used this as justification to suggest an amendment to the provision, but provided no data to indicate how frequently the section is being misused.

Again Supreme Court, in a relatively recent case, **Sushil Kumar Sharma vs. Union of India and others** JT 2005(6) 266, observed: “The object of the provision is prevention of the dowry menace. But as has been rightly contented by the petitioner that many instances have come to light where the complaints are not bonafide and have been filed with oblique motive. In such cases acquittal of the accused does not in all cases wipe out the ignominy suffered during and prior to trial. Sometimes adverse media coverage adds to the misery. The question, therefore, is what remedial measures can be taken to prevent abuse of the well-intentioned provision. Merely because the provision is constitutional and *intra vires*, does not give a licence to unscrupulous persons to wreck personal vendetta or unleash harassment. It may, therefore, become necessary for the legislature to find out ways how the makers of frivolous complaints or allegations can be appropriately dealt with.

The Supreme Court in its recent judgment in **Arnesh Kumar v. State of Bihar and Anr** SLP (Cri) No. 9127 of 2013 said that no arrest should be made immediately in the offences which are allegedly committed by the accused and the offence is cognizable and non-bailable, with particular reference to S. 498A. It laid down certain guidelines for the police officers to follow relating to the arrests made under the section, due to increase in number of false complaints.

Section 304B-Dowry Death

The Indian Penal Code under defines it as-Dowry death.—(1) Where the death of a woman is caused by any burns or bodily injury or occurs otherwise than under normal circumstances within seven years of her marriage and it is shown that soon before her death she was subjected to cruelty or harassment by her husband or any relative of her husband for, or in connection with, any demand for dowry, such death shall be called “dowry death”, and such husband or relative shall be deemed to have caused her death.

Explanation, For the purpose of this sub-section, “dowry” shall have the same meaning as in section 2 of the Dowry Prohibition Act, 1961 (28 of 1961).

(2) Whoever commits dowry death shall be punished with imprisonment for a term which shall not be less than seven years but which may extend to imprisonment for life.]

Punishment—Imprisonment of not less than 7 years but which may extend to imprisonment for life—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

Essential ingredients as discussed in **Kaliyaperumal v. State of Tamil Nadu, AIR 2003 SC 3828**

1. Death of a woman should be caused by burns or bodily injury or otherwise than under normal

circumstances.

2. Death should have occurred within seven years of her marriage
3. The woman must have been subjected to cruelty or harassment by her husband or any relative of her husband.
4. Cruelty or harassment should be for or in connection with the demand for dowry.
5. Cruelty or harassment should have been meted out to the woman before her death.

In ***Prema S. Rao v. YadlaSrinivasa Rao*** AIR 2003 SC 11, it was held that to attract the provisions of section 304B, one of the main ingredients which is required to be established is that “soon before her death” she was subjected to cruelty and harassment “in connection with the demand of dowry”.

Expression ‘soon before her death’

The expression ‘soon before her death’ used in the substantive section 304B, I.P.C. and Section 113B of the Evidence Act is connected to the idea of proximity text. No definite period has been indicated and the expression ‘soon before her death’ is not defined. The determination of the period which can come within the term ‘soon before’ is to be determined by the courts, depending upon facts and circumstances of each case. Suffice, however, to indicate that the expression ‘soon before’ would normally imply that the interval should not be much between the concerned cruelty or harassment and the death in question. There must be existence of a proximate and live-link between the effect of cruelty based on dowry demand and the concerned death. If alleged incident of cruelty is remote in time and has become stale enough not to disturb mental equilibrium of the woman concerned, it would be of no consequence ***Yashoda v. State of Madhya Pradesh* (2004) 3 SCC 98.**

Applicability

In the case of ***Vadde Rama Rao v. State of Andhra Pradesh***, 1990 Cr LJ 1666 it was argued that the husband or any of his relative could be guilty of the offence only if he or she directly participated in the actual commission of the offence. This contention was rejected by the Andhra Pradesh High Court. It observed that in its real import, section 304B would be applicable if cruelty or harassment was inflicted by the husband on any of his relative for, or in connection with demand for dowry, immediately preceding the death by bodily injury or by burning.

Burden of Proof

The prosecution under section 304B cannot escape from the burden of proof that the harassment to cruelty was related to the demand for dowry and that it was caused “soon before her death”. The word “dowry” has to be understood as it is defined in section 2 of the Dowry Prohibition Act, 1961. There are three occasions related to dowry, i.e., before marriage, at the time of marriage and at an unending period. The customary payment in connection with the birth of child or other ceremonies, are not involved within ambit of “dowry”, ***Satvir Singh v. State of Punjab***, AIR 2001 SC 2828.

In **PatilParesh Kumar Jayantilal v. State of Gujarat** 2000 Cr LJ 223 (Guj), it was held that where the evidence revealed that accused-husband killed deceased-wife for not satisfying his dowry demand but there was nothing on record to show involvement of co-accused in-laws, co-accused in-laws are not guilty of offence under sections 304B.

Section 304B and Section 498A – Distinction

There is a clear distinction between section 304B and 498A of the Indian Penal Code. Now, under section 304B it is a dowry death that is punishable and such death should have occurred within seven years of marriage and this period of limitation is not there in 498A.

In the case of **SoniDevrajbhairabubhai v. State of Gujarat** 1991 Cr LJ (313) (SC) it was held that Section 304B is a substantive provision creating a new offence and not merely a provision effecting a change in procedure for trial of a pre-existing substantive offence. As a consequence, accused cannot be tried and punished for the offence of dowry death provided in section 304B with the minimum sentence of seven years' imprisonment for an act done by them prior to creation of the new offence of dowry death.

In **Shanti v. State of Haryana**, in-laws insisted for dowry from the daughter-in-law. Ultimately, it appeared that she was done to death and her body was cremated without sending any information to her parents or any relatives. The Supreme Court held that, if it was natural death, there was no need for the appellants to act in such unnatural manner and cremate the body in great and unholy haste without even informing the parents. In the result it was an unnatural death, either homicidal or suicidal. But even assuming that it is a case of suicide even then it would be death which had occurred in unnatural circumstances. Even in such a case, section 304B is attracted and this position is not disputed. Therefore, the prosecution has established that the appellants have committed an offence punishable under section 304B beyond all reasonable doubts **Shanti v. State of Haryana, AIR 1991 SC 1226**.

Q. Distinction / Difference between Criminal Misappropriation and Criminal breach of Trust

No.	Criminal Misappropriation	Criminal breach of Trust
	Definition : Section 403 of the Indian Penal Code defines Criminal misappropriation and prescribes the punishment for the offence - "Whoever, being in any manner entrusted with property, or with any dominion over property, dishonestly misappropriates or converts to his own use that property, or dishonestly uses or disposes of that property in violation of any	Definition : Section 405 of the Indian Penal Code defines Criminal breach of trust - "Whoever, being in any manner entrusted with property, or with any dominion over property, dishonestly misappropriates or converts to his own use that property, or dishonestly uses or disposes of that property in violation of any direction of law prescribing the mode in which

	direction of law prescribing the mode in which such trust is to be discharged, or of any legal contract, express or implied, which he has made touching the discharge of such trust, or willfully suffers any other person so to do, commits "criminal breach of trust".	such trust is to be discharged, or of any legal contract, express or implied, which he has made touching the discharge of such trust, or willfully suffers any other person so to do, commits "criminal breach of trust".
2	Ingredients : To constitute the offence of misappropriation the following ingredients must be present – 1) The accused misappropriated that property and converted the same to his own use dishonestly 2) The movable property belonged to that complainant.	Ingredients: To constitute criminal breach of trust following ingredients must be present. 1) The accused must be entrusted with property or with dominion over property; 2) The person who entrusted must – i) dishonestly misappropriate or convert to his use that property or ii) dishonestly use or dispose of that property or willfully suffer any other person to do so a) in violation of any directions of law prescribing the mode in which such property is to be discharged \. b) any legal contract made touching discharge of such trust.
3	The property comes into the possession of the accused in some natural manner.	The property comes into possession of the accused either by an express entrustment or by some process. There is conversion of property held by a person in fiduciary capacity.
4	It can be only movable property	It can be of any movable as well as immovable property.
5	There is no contractual relationship	There is contractual relationship
6	Non-cognizable, bailable, compoundable with permission of Court and triable by any	Non-cognizable, bailable, non-compoundable and triable by the Magistrate of the First Class.

	Magistrate.	
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Define criminal conspiracy and its ingredients given in Section 120A of IPC. How it punishable.

INTRODUCTION: The original Indian Penal Code did not have an offence by the name of criminal conspiracy. However the need to have this offence was felt later on and this chapter V-A relating to criminal conspiracy with only two sections in it i.e. section: 120-A which provides definition of criminal conspiracy and Sec. 120-B providing its punishment was added in IPC by the Criminal Law Amendment act 1913.

Definition of Criminal conspiracy under Sec.120-A

When two or more persons agree to do or cause to be done

- I) an illegal Act
- II) An act which is not illegal but when it is done by illegal means.

Such an agreement is designated/made a criminal conspiracy.

INGREDIENTS:-

1. There shall be minimum two or more person.
2. Agree for illegal act. The expression 'illegal' has been defined in Sec.43 of the code. According to this section, the word illegal is applicable to everything:
 - i) Which is an offence
 - ii) Which is prohibited by law
 - iii) Which is furnishes ground for a civil action
 - iv) Act is done by illegal means.

Further provided that no agreement except an agreement to commit an offence, shall amount to a criminal conspiracy unless some act besides the agreement is done by one or more parties to such agreement in pursuance thereof.

Explanation: It is immaterial whether his illegal act is the ultimate object of such agreement or is merely incidental to that object. In other words, the conspirator is guilty of criminal conspiracy; whether the illegal act is the ultimate object of the agreement or it is merely incidental to the object of the agreement. The law does not treat these cases differently.

Case: **Mohd. Usman v/s State 1981:** In this case the accused persons were selling explosive substances without valid license for a very long time. The SC held that they were guilty of criminal conspiracy, as they had been doing this for a very long time, which could not have been possible without an agreement between them, and this agreement was proved by necessary implication.

ILLUSTRATION: 'A' the wife of 'B' had illicit connection with 'C', who wanted to murder 'B'. Instead of telling B that C wanted to murder him, told C that B would go to lonely place on a particular day &

time. C murdered B at that particular place, date and time. Thus A and C both are guilty of the offence of criminal conspiracy. C is also guilty of adultery and murder.

CONVICTION OF A SINGLE PERSON FOR CRIMINAL CONSPIRACY: - An important question arises whether a single individual can be held guilty of this offence. For criminal conspiracy, there 'must' be at-least two persons. Thus the section only says that agreement must be between two or more persons and not that the connection must be of at-least two persons.

ILLUSTRATION: - Where the prosecution case is that, four: persons had entered into an agreement to commit murder of 'Z' and out of these four one is 'D' without a shadow of doubt. The other three might be A, B and C or might not be A, B and C because the evidence against them is doubly. In such case, since two things are certain the member of conspirators was four and one of these four was definitely "D" thus D alone is guilty of criminal conspiracy.

Case: **B.H. Narasimha Rao V/s Govt. Of A.P 1995** the accused was charged for committing an offence in conspiracy with seven other who were al acquitted. It was held that the accused could not be convicted under section 120-B on the mere ground that he was head of a section of the branch where the fraud was alleged to have been committed.

Section 120-B: Punishment of criminal conspiracy: Whoever is a party to a criminal conspiracy to commit an offence punishable with death, imprisonment for life or rigorous imprisonment for a term of two years of upwards shall, where were no express provision is made in this code for punishment of such conspiracy, be punished in the same manner as if he had abetted of such offence.

Whoever is a party to a criminal conspiracy other than a criminal conspiracy to commit an offence punishable with imprisonment for a term not exceeding six month or with fine or with both.